

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years



A Maharatna Company

Request for Proposal (RFP)

Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

INVITATION TO BIDS

Reference Number: 02:09:197:I:25-26:ATS dated 26-Nov-2025

**POWER FINANCE CORPORATION LIMITED
(A Govt. of India Undertaking)
Corp. Office: Urjanidhi, 1 Barakhamba Lane, Connaught Place,
New Delhi-110001, India**

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

DISCLAIMER

This RFP is not an offer by Power Finance Corporation Limited, but an invitation to receive electronic proposals/ e-bids from interested eligible bidders for Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years Head Office New Delhi.

No contractual obligation whatsoever shall arise from the RFP process unless and until a LOA is issued and accepted by successful bidder and signing of agreement, if any.

This RFP is being issued with no financial commitment and PFC reserves the right to withdraw the RFP and change or vary any part thereof or foreclose the same or abolish the requirement at any stage.

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

INVITATION TO BID

Ref. No. 02:09:197:I:25-26:ATS

Date: 26-Nov-2025

1. Power Finance Corporation Ltd. intends to invite e-bids for “**Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years**”
2. Interested bidders must go through the complete tender document for details before submission of their Bids on GeM portal. Interested bidders may obtain further information from below mentioned contact details.
3. The Tender Document shall be published on the GeM Portal/ Central Public Procurement Portal/ PFC Website. The time table for bid process is as follows:

Publication of RFP	26-Nov-2025
Last date of submission of pre bid queries, if any	NA
Last date of reply of pre bid queries, if any	NA
Bid submission date on GeM portal	17-Dec-2025 up to 1100 Hrs
Date & Time of Opening of Technical part of Bids on GeM portal.	17-Dec -2025 at 1130 hrs
Date & Time of Opening of Price Bids	To be intimated later
Place of submission of Bids	GeM portal
Place of Opening of Bids	PFC office on GeM portal
Address for communication	<i>PFC Ltd., Urjanidhi, 1, Barakhamba Lane, CP, New Delhi – 110 001.</i>
Contact Person	<i>Raj Kishor, GM (Procurement)</i>
Telephone	<i>011-23456365</i>
E-mail ID	<i>[between 10:00 hrs to 16:00 hrs on working days] rk_dubey@pfcindia.com</i>
	<i>Vinay Garg, DGM (Procurement)</i>
	<i>011-23456349</i>
	<i>[between 10:00 hrs to 16:00 hrs on working days] vinay_garg@pfcindia.com</i>

Bidders are requested to follow above schedule on GeM portal in order to participate in the tender.

Thanking you,

Yours faithfully,
Sd/-
(Raj Kishor)
GM (Procurement)

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Bid Invitation Summery

No. 02:09:197:I:25-26:ATS

Date: 26-Nov-2025

Subject: Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

Dear Sir,

Power Finance Corporation Ltd., a Govt. of India Undertaking under the Administrative Control of Ministry of Power invites e-bids for **“Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years”** at Regd. Office at Urjanidhi, 1 Barakhamba Lane, Connaught Place, New Delhi – 110 001. The summery of this RFP is as below:

Tender Title	Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years
Tender Reference Number	02:09:197:I:25-26:ATS
Tender ID (GeM Bid No.)	GEM/2025/B/6786774
Tender Type	Open
Tender Category	AMC / CMS for pre-owned products
No. of Covers	2
Bidding System	Single Stage
e-Reverse Auction to be held after Financial bid opening	Yes
Is this item reserved for exclusive Procurement from MSEs	No
Nature of Bidders eligible – OEMs/ Dealers authorized by OEMs	Both
Is the requirement divisible for preference	No
Would the contract be split among more than one bidder	No
Cost of Tender Document (INR)	NA
Earnest Money Deposited (EMD)	The physical copy of the EMD document must reach before bid submission date and time at Power Finance Corporation Limited, Urjanidhi, 1, Barakhamba Lane, Connaught Place, New Delhi – 110 001
Integrity Pact to be Signed and Submitted along with bid	No
Price Variation Clause	No
Quantity Splitting/ Parallel Orders	NA

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Tender document shall comprise of the following documents in addition to GeM terms and conditions:

S. No.	Description Tender Documents	
1.	General Conditions of Contract (GCC)	Annexure I
2.	Instruction to Bidders (Section – INB)	Annexure II
3.	Scope of Work/ Detail Technical Specification	Annexure III
4.	Schedule-1 (Qualifying Requirement Data) Schedule-2 (Technical Deviations) Schedule-3 (Commercial Deviations)	Annexure IV
5.	Price Bid Format (To be filled on GeM portal as per format available there)	Annexure V
6.	Acceptance of Terms and Conditions Format for not black listing of the company Proforma For Bank Guarantee For EMD/Contract Performance Guarantee Letter of Authority – Proforma Undertaking - Bidders financial standing Bidder Information Details Undertaking: Regarding not having righteous foreign link to share information Undertaking: For taking penal action in case of withdrawal of offer by Vendor Undertaking: For not to sub-contract/ outsource/ deploy outsourced manpower without prior written consent of PFC. Undertaking Undertaking for Exit Plan Malicious Code Certificate IT Outsourcing Compliance Requirement Outsourcing of Cloud Computing Services Undertaking for Proprietary Article Tender Confidentiality and non-disclosure agreement, if any Checklist	Appendix – I Appendix – II Appendix – III Appendix – IV Appendix – V Appendix – VI Appendix – VII Appendix – VIII Appendix – IX Appendix – X Appendix – XI Appendix – XII Appendix – XIII Appendix – XIV Appendix – XV Appendix – XVI Appendix – XVII

The bidders are required to submit EMD/e-PBG as per GeM terms and conditions only.

Note:

Due Date & Time : 17-Dec-2025; 11.00 AM

Opening Date & Time : 17-Dec-2025; 11.30 AM

Thanking you,

Yours faithfully,
Sd/-
(Raj Kishor)
GM (Procurement)

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LTO-8 Tape Library for a period of two (2) years**

ANNEXURE - I

SECTION GCC
GENERAL CONDITIONS OF CONTRACT

1.0 DEFINITION OF TERMS

- 1.1 The ‘Contract’ means the agreement entered into between Owner and Contractor by awarding a contract on GeM portal and acceptance of the same by contractor or as per the Contract Agreement signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.
- 1.2 ‘Owner’ shall mean the Power Finance Corporation Limited., New Delhi, India (A Government of India Undertaking) having its Corporate office at “Urjanidhi”, 1, Barakhamba Lane, Connaught Place, New Delhi – 110 001 and shall include their legal representatives, successors and assigns
- 1.3 ‘Contractor’ or ‘Manufacturer’ shall mean the Bidder whose bid will be accepted by the Owner for the award of the Works and shall include such successful Bidder’s legal representatives, successors and permitted assigns.
- 1.4 ‘Sub-Contractor’ shall mean the person named in the Contract for any part of the Works or any person to whom any part of the Contract has been sublet by the Contractor with the consent in writing of the Engineer and will include the legal representatives, successors and permitted assigns of such person.
- 1.5 ‘Engineer’ shall mean the officer appointed in writing by the Owner to act as Engineer from time to time for the purpose of the Contract by the Owner.
- 1.6 ‘Consulting Engineer’/ ‘Consultant’ shall mean any firm or person duly appointed as such from time to time by the Owner.
- 1.7 The terms ‘Equipment’, ‘Stores’, and ‘Materials’ shall mean and include equipment, stores and materials to be provided by the Contractor under the Contract.
- 1.8 ‘Works’ shall mean and include the furnishing of equipment/materials at site and if required, supervision of unloading, storage, handling at site, erection, testing & commissioning and putting into satisfactory operation as defined in the Contract.
- 1.9 ‘Specifications’ shall mean the Specifications and Bidding Document forming a part of the Contract and such other Schedules and drawings as may be mutually agreed upon.
- 1.10 ‘Site’ shall mean and include the land and other places on, into or through which the Works and the related facilities are to be erected or installed and any adjacent land, paths, street or reservoir which may be allocated or used by the Owner or Contractor in the performance of the Contract.
- 1.11 The term ‘Contract Price’ shall mean the lumpsum price quoted by the Contractor in his bid with additions and/or deletions as may be agreed and incorporated in the Letter of Award, for the entire scope of the works.
- 1.12 ‘Manufacturer’s Works’ or ‘Contractor’s Works’ shall mean the place of Works used by the manufacturer, the Contractor, their collaborators/associates or Sub-Contractors for the performance of the Contract.

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- 1.13 'Inspector' shall mean the Owner or any person nominated by the Owner from time to time, to inspect the equipment, stores or Works under the Contract and/or the duly authorized representative of the Owner.
- 1.14 'Notice of Award of the Contract' / 'Letter of Award' / 'Telex of Award' shall mean the official notice issued by the Owner notifying the Contractor that his bid has been accepted.
- 1.15 'Date of Contract' shall mean the date on which Notice of Award of Contract/Letter of award has been issued.
- 1.16 'Month' shall mean the calendar month. 'Day' or 'Days' unless herein otherwise expressly defined shall mean calendar day or days of 24 hours each.
- A 'Week' shall mean continuous period of 7 (seven) days.
- 1.17 'Writing' shall include any manuscript, type written or printed statement, under or over signature and/or seal as the case may be.
- 1.18 When the words 'Approved', 'Subject to Approval', 'Satisfactory', 'Equal to', 'Proper', 'Requested', 'As Directed', 'Where Directed', 'When Directed', 'Determined by', 'Accepted', 'Permitted', or words and phrases of like importance are used the approval, judgment, direction etc., is understood to be a function of the Owner/Engineer.
- 1.19 Test on completion shall mean such tests as prescribed in the Contract to be performed by the Contractor before the work is taken over by the Owner.
- 1.20 'Start up' shall mean the time period required to bring the equipment covered under the Contract from an inactive condition, when construction is essentially completed, to the state ready for trial operation. The start up period shall include preliminary inspection and checkout of equipment and supporting sub-system, initial operation of the complete equipment covered under the Contract to obtain necessary pre-trial operation data, perform calibration and corrective action, shut down, inspection and adjustment prior to the trial operation period.
- 1.21 'Initial operation' shall mean the first integral operation of the complete equipment covered under the Contract with the sub-system and supporting equipment in service or available for service.
- 1.22 'Trial operation', 'Reliability Test', 'Trial Run', 'Completion test', shall mean the extended period of time after the start up period. During this trial operation period the unit shall be operated over the full load range. The length of Trial Operation shall be as determined by the Engineer, unless otherwise specified elsewhere in the Contract.
- 1.23 'Performance and Guarantee Test' shall mean all operational checks and tests required to determine and demonstrate capacity, efficiency, and operating characteristics as specified in the Contract Documents.
- 1.24 The term 'Final Acceptance' shall mean the Owner's written acceptance of the Works performed under the Contract, after successful commissioning/completion of Performance and Guarantee Tests, as specified in the accompanying Technical Specifications or otherwise agreed in the Contract.
- 1.25 'Commercial Operation' shall mean the condition of operation in which the complete equipment covered under the Contract is officially declared by the Owner to be available for continuous

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operation at different loads upto and including rated capacity. Such declaration by the Owner, however, shall not relieve or prejudice the Contractor of any of his obligations under the Contract.

1.26 'Warranty Period'/'Maintenance Period' shall mean the period during which the Contractor shall remain liable for repair or replacement of any defective part of the Works performed under the Contract.

1.27 'Latent Defects' shall mean such defects caused by faulty design, material or workmanship which cannot be detected during inspection, testing etc. based on the technology available for carrying out such tests.

2.0 SUBMISSION OF BIDS

2.1 The entire process of bidding shall be through e-procurement/e-tendering on GeM portal. If require any brochures/specifications relating to items in such case their scan copy to be uploaded in technical bids.

3.0 SIGNATURE OF BIDS

3.1 The bid must contain the name and place of business of the person or persons making the bid and must be signed by the Bidder with his usual signature as per GeM Terms and Conditions. The names of all persons signing should also be typed or printed below the signature.

3.2 Bid by a partnership must be furnished with full names of all partners and be signed with the partnership name, followed by the signature(s) and designation(s) of the authorized partner(s) or other authorized representative(s).

3.3 Bids by Corporation/Company must be signed with the legal name of the Corporation/Company by the President, Managing Director or by the Company Secretary or other person or persons authorized to bid on behalf of such Corporation/Company in the matter.

3.4 Satisfactory evidence of authority of the person signing on behalf of the Bidder shall be furnished with the bid.

3.5 The Bidder's name stated on the proposal shall be the exact legal name of the firm.

4.0 SEALING AND MARKING OF BIDS

4.1 The envelope containing EMD document and tender cost fee, if any shall indicate the name and address of the Bidder to enable the envelope to be returned unopened in case it is declared "late" or "rejected".

5.0 DEADLINE FOR SUBMISSION OF BIDS

5.1 Bids submitted in physical form will not be accepted.

5.2 Envelopes containing EMD document and tender cost fee, if any must be received by the Owner at the address specified above, not later than the time & date mentioned in the Invitation to Bid.

5.3 The Owner may, at its discretion, extend this deadline for the submission of bids by amending the Invitation to Bid/ RFP, in which case all rights and obligations of the Owner and Bidders previously subject to the deadline will thereafter be subject to the deadline as extended.

6.0 EARNEST MONEY DEPOSIT (EMD)

6.1 Each bid shall be accompanied by a EMD amounting to Rs. 36,000/- in one of the form listed out herein below.

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- 6.2 The EMD shall be valid for a period of six calendar months from the date of bid opening which shall be extended from time to time as desired by Purchaser. The successful Bidder shall keep his EMD valid till one month beyond the submission of Contract Performance Guarantee, if required.
- 6.3 **The EMD may be submitted in one of the following forms:**
(a) EMD amount can be deposited in digital mode through following link:

<http://www.pfcapps.com/PaymentGateway/OnlinePaymentOther.aspx>.

(b) An irrevocable bank guarantee from any Nationalized Indian Bank or reputed commercial bank of the Bidder's country in favour of Power Finance Corporation Ltd., New Delhi in the proforma enclosed herewith as APPENDIX - III.

(c) Insurance surety bond
- 6.4 Any bid, not accompanied by the EMD is liable to be rejected by the Owner as non-responsive.
- 6.4.1 EMD of the unsuccessful bidder shall be returned after the acceptance of the Purchase Order by the successful bidder.
- 6.4.2 The EMD of the successful bidder shall be converted into security deposit.
- 6.4.3 The EMD may be forfeited without any notice or proof of damages etc.

(a) If a Bidder withdraws its bid during the period of bid validity specified by the bidder on the bid form.
OR

(b) In the case of a successful Bidder, if the Bidder fails to accept Letter of Award/Purchase Order incorporating the agreements reached during pre-award discussion unconditionally.
- 6.4.4 No interest will be payable by the owner on the above EMD.
- 6.5 **EMD EXEMPTION:** The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.
- 7.0 MODIFICATION AND WITHDRAWAL OF BIDS**
- 7.1 No bid may be modified subsequent to the deadline for submission of bids.
- 7.2 No bid may be withdrawn in the interval between the deadline for submission of bids and the expiration of the period of bid validity specified by the Bidder on the Bid Form. Withdrawal/modification of a bid during this interval may result in the forfeiture of bid security.
- 8.0 INFORMATION REQUIRED WITH THE PROPOSAL**
- 8.1 The following information shall be required with technical bid in the form of scanned copies, if required.
- 8.2 The complete information shall be provided by the Bidder in the form of separate sheets, drawing, catalogues, etc.

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- 8.3 Oral statements made by the Bidder at any time regarding quality, quantity or arrangement of the equipment or any other matter will not be considered.
- 8.4 Standard catalogue pages and other documents of the Bidder may be used in the bid to provide additional information and data as deemed necessary by the Bidder.
- 8.5 In case the 'Bid Proposal' information contradicts RFP requirements, the RFP requirements will govern, unless otherwise brought out clearly in the technical/commercial deviation schedules.
- 8.6 The Bidder / Service Provider / Vendor/ Supplier should not be owned or controlled by any Director or Employee of the owner or their relatives and bidder shall submit an undertaking in this regard along with the technical bid.

9.0 OPENING OF BIDS BY THE OWNER

- 9.1 The Bids shall be opened by the Owner on any date after the last date fixed for Bid receipt as specified in Invitation of Bids or in the case any extension has been given thereto, after the extended Bid submission date as notified on GeM portal.
- 9.2 The Bidders' names, bid prices, modifications, bid withdrawals and the presence or absence of the requisite EMD and such other details as the Owner, at its discretion may consider appropriate, will be announced at the opening.
- 9.3 No electronic recording devices will be permitted during bid opening.

10.0 CLARIFICATION OF BIDS

- 10.1 To assist in the examination, evaluation and comparison of bids the Owner may, at its discretion, ask the Bidder for clarification of its bid. The request for clarification and the response shall be on GeM or in writing to PFC as the case may be and no change in the price or substance of the bid shall be sought, offered or permitted.

11.0 PRELIMINARY EXAMINATION

- 11.1 The Owner will examine the bids to determine whether they are complete, whether any computational errors have been made, whether required sureties have been furnished, whether the documents have been properly signed, and whether the bids are generally in order.
- 11.2 Arithmetical errors will be rectified on the following basis: If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and total price shall be corrected. If there is a discrepancy between words and figures, the amount in words will prevail. If the Bidder does not accept the correction of the errors as above, his Bid will be rejected and the amount of EMD forfeited.
- 11.3 The Bidder should ensure that the prices furnished in various price schedules are consistent with each other. In the case of any inconsistency in the prices, furnished in the specified price schedules to be identified in Bid Form for this purpose, the Owner shall be entitled to consider the highest price for the purpose of evaluation and for the purpose of award of Contract use the lowest of the prices in these schedules.
- 11.4 Prior to the detailed evaluation, the Owner will determine the substantial responsiveness of each bid to the RFP. For the purpose of these Clauses, a substantially responsive bid is one which conforms to all the terms and conditions of the RFP without material deviations. A material deviation is one which affects in any way the prices, quality, quantity or delivery period or which limits in any way the responsibilities or liabilities of the Bidder of any right of the Owner as required in these RFP documents and specifications. The Owner's determination of a bid's

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responsiveness shall be based on the contents of the bid itself without recourse to extrinsic evidence.

- 11.5 A bid determined as not substantially responsive will be rejected by the Owner and may not subsequently be made responsive by the Bidder by correction of the non-conformity.

12.0 PRICE

- 12.1 The Bidder shall quote firm prices valid till the complete execution of the order unless price variation clause is not included in Special Conditions of Contract.
- 12.2 The Bidder shall quote on FOR Destination basis inclusive of packing, forwarding, freight, insurance charges, taxes & duties, installation charges, testing and commissioning charges etc., if any.
- 12.3 The Bidder shall quote, item wise unit and lot prices for all the material and services (if any).

13.0 TAXES AND DUTIES

- 13.1 All the Bidders are requested to familiarize themselves with the laws, rules and regulations prevailing in India and consider the same while developing and submitting their Proposal.
- 13.2 All Customs duties, Excise Duties, Sales Tax, GST and other levies payable by the bidder on goods, equipments, components, Sub-assemblies, raw materials & any other items used for their consumption or dispatched directly to owner by the contractor or their sub-suppliers shall be included in the bid price & any such taxes, duties, levies additionally payable will be to bidder's account & no separate claim on this account will be entertained by the owner.
- 13.3 The Contractor shall be liable and pay all non-Indian taxes, duties, levies, lawfully assessed against the Owner or the Contractor in pursuance of the Contract. Tax liability, if any, on Contractor's personal income & property shall be borne by the Contractor and shall be the responsibility of the Contractor as per Tax Laws of India.
- 13.4 PFC shall be entitled to deduct applicable tax (if any) at source as per Indian Laws from all payments due to the Contractor under the contract.
- 13.5 As regards the Indian Income Tax, surcharges on Income Tax and any other Corporate tax, PFC shall not bear any tax liability, whatsoever, irrespective of the mode of contracting. The Contractor shall be liable and responsible for payment of all such taxes, if attracted under the provisions of the law. In this connection, attention of Contractors is invited to the provisions of Indian Income Tax Act and the circulars issued by the Central Board of Direct Taxes, Government of India.
- 13.6 If any rates of taxes/duties/levies (hereinafter called 'Tax') are increased or decreased, a new Tax is introduced, an existing Tax is abolished or any change in interpretation or application of any Tax occurs in the course of the performance of Contract, which was or will be assessed on the Contractor in connection with performance of the Contract, an equitable adjustment of the Contract Price shall be made to fully take in to account any such change by addition to the Contract Price or deduction there from, as the case may be. However, these adjustments would be restricted to direct transactions between the Owner and the Contractor and not on procurement of components/products/services etc. by the Contractor and shall also not be applicable on the bought out items dispatched directly from sub vendor's works to site.

14.0 INSURANCE

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14.1 The seller at his cost shall arrange, secure and maintain all insurance as may be pertinent and obligatory in terms of law to protect his interest and interests of the Owner against all perils. The responsibility to maintain adequate insurance coverage at all times till the equipment/materials “Taken Over” by the Owner shall be of Seller alone. The insurance covers to be taken by the seller shall be in the name of Owner. The seller shall however be authorized to deal directly with the insurance company.

14.2 The insurance required to be taken by seller shall cover all risks including war, strike, riots and civil commotion etc. The scope of such insurance shall be adequate to cover the replacement/re-installment cost of the materials delivered at site. Notwithstanding the extent of insurance cover the amount of claim available from the underwriters and the time at which claim is available from the under underwriters, the seller shall be liable to make good the full availability as per Owner’s requirements.

15.0 BID CURRENCIES

15.1 Prices shall be quoted in Indian Rupees only.

16.0 PERIOD OF VALIDITY OF BIDS

16.1 Bids shall remain valid and open for acceptance as specified on GeM portal.

17.0 BID OPENING – E-Procurement

17.1 Those bids whose EMD and tender cost fee, if any is not submitted before the due date and time shall not be opened. Further, bids will be opened as per GeM terms and condition on www.gem.gov.in.

18.0 PROCESS TO BE CONFIDENTIAL

18.1 Any effort by a bidder to influence the Purchaser in the process of examination, clarification, evaluation and comparison of Bids, and in decisions concerning the award of Contract, may result in the rejection of his Bid.

19.0 CORRECTION OF ERRORS

19.1 Bids determined to be sub-sequentially responsive will be checked by the Purchaser for any arithmetic errors in computation and summation, Errors will be corrected by the Purchaser as follows:

- a) Where there is discrepancy between amounts in figures and in words, the amount in words will govern.
- b) where there is a discrepancy between the unit rate and the total amount derived from the multiplication of the unit rate and the quantity, the unit rate as quoted will govern, unless in the opinion of the Purchaser there is an obviously gross misplacement of the decimal point in the unit rate, in which event the total amount as quoted will govern and the unit rate will be corrected.

19.2 The amount stated in the Bid Form will be adjusted by the Purchaser in accordance with the above procedure for the correction of errors and shall be considered as binding upon the bidder. If the bidder does not accept the corrected amount of Bid, his Bid will be rejected and the EMD forfeited.

20.0 TIME SCHEDULE

20.1 The basic consideration and the essence of the Contract shall be the strict adherence to the time schedule specified in the bidding documents and incorporated in the Contract for supplies and services.

21.0 EVALUATION AND COMPARISION OF BIDS

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- 21.1 The Purchaser will evaluate and compare the Bids previously determined to be substantially responsive to the requirements of the e-bidding documents, pursuant to Clause 11.0 above.
- 21.2 In evaluating Bids, the Owner will determine for each Bid the evaluated Bid price by adjusting the Bid price as follows:
- a) Making any corrections for errors pursuant to Clause 19.0.
 - b) Excluding provisional sums.
 - c) Making an appropriate adjustment for any other acceptable quantifiable deviations subject to responsiveness test at Clause 11.0.
- 21.3 Bidder shall state their Bid price for the payment schedules outlined in the specifications. Bids will be evaluated on the basis of this base price.
- 21.4 The purchaser reserves the right to accept or reject any variation, deviations or alternative offered. Variations, deviations, alternative offers and other factors which are in excess of the requirements of the bidding documents or otherwise result in the accrual of unsolicited benefits to the Purchaser shall not be taken into account in Bid evaluation.
- 21.5 Sales tax, GST and other levies legally payable on the transaction between the Purchaser, the bidder & sub-supplier shall be taken into account for Bid evaluation and should be included in offered prices.
- 21.6 Bid evaluation will be carried out as per provisions available on GeM portal and award for contract shall be made as per outcome of evaluation on GeM portal.
- 21.7 Preference to purchase from MSEs/MILs will be given as per Dept. of Exp., Ministry of Finance OM no. F.1/4/2021-PPD dated 18.05.2023.

22.0 AWARD CRITERIA

- 22.1 The Purchaser will award the Contract to the bidder whose Bid has been determined to be substantially responsive to the bidding documents as per evaluation criteria as per GeM portal and has been determined as the lowest evaluated bid pursuant to Clause 21 above, provided further that the bidder has the capability and resources to carry out the Contract effectively.

23.0 PURCHASER'S RIGHT TO ACCEPT ANY BID AND TO REJECT ANY OR ALL BIDS

- 23.1 The Purchaser reserves the right to accept or reject any e-Bid and to annul the e-bidding process and reject all e-Bids at any time prior to award of Contract, without thereby incurring any liability to the affected bidder or bidders or any obligation to inform the affected bidders or bidders of the grounds for the Purchaser's action.

24.0 NOTIFICATION OF AWARD

- 24.1 Prior to the expiry of the period of Bid validity prescribed by the Purchaser, the Purchaser will notify the successful bidder on GeM. Successful bidder shall accept the same on GeM within 5 days' time as per GeM terms and Conditions.
- 24.2 The Notification of Award will constitute the formation of the Contract.

25.0 DELIVERY/SHIPMENT TERMS

- 25.1 In case of service, all the study, recommendations and deliverables shall be completed within the completion period as stipulated in the DTS/SCC/ Purchase Order/LOA.
- 25.2 In case of goods, all the equipment/materials shall be dispatched to destination on FOR destination basis within the delivery period as stipulated in the Purchase Order/LOA.

26.0 LOCAL CONDITIONS

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- 26.1** It will be imperative on each bidder to fully inform himself of all local conditions and factors which may have any effect on the performance of the Contract covered under these specifications and documents.

27.0 PAYMENT TERMS

- 27.1** Any clarifications to the bills submitted will be sought within 7 working days of receipt of bills and payment will be released within 15 working days after receipt of clarifications so sought from the vendor.
- 27.2** MSME vendors may also avail the bill discounting facility of TReDS through M1 Xchange. For availing the facility vendor has to register himself on M1 Xchange and upload the invoices of M1 Xchange portal.

28.0 ACCESS TO SUPPLIERS PREMISES

- 28.1** The Owner and/or his authorized representative shall be provided access to Vendor's and or his sub-Vendors premises, at any time during the pendency of the order for expediting, inspection, checking etc. of the progress of the work.
- 28.2** The successful bidder(s) will allow PFC (or its representatives) to conduct audits either by PFC's internal/ external auditors, or by external specialists appointed to act on behalf of PFC and to obtain copies of any audit or review reports and findings made on the service provider in conjunction with the services performed for PFC.

29.0 REMOVAL OF REJECTED GOODS AND REPLACEMENT

If upon deliver, whether inspected and approved earlier or otherwise the material/equipment is not in conformity with the specifications the same shall be rejected by the Purchaser or his duly authorized representative and notification to this effect will be issued to the Vendor normally within 30 days from the date of receipt of the material at the work/site/office.

The Supplier shall arrange removal of the rejected items within 15 days of the notice of rejection failing which the owner shall be at liberty to dispose off such rejected items in any manner as he may think fit. All expenses incurred by the Owner in disposing off the rejected items including money paid to the Supplier shall be recoverable from the Supplier.

30.0 SOURCE OF SUPPLY

The Vendor will ensure that the indigenous capacity is utilized to the fullest extent possible in execution of this order. Where imports are unavoidable, all such items shall be imported by the Vendor in good time against his own import license without affecting the contractual delivery date/delivery schedule.

31.0 LIQUIDATED DAMAGES FOR DELAY IN COMPLETION

- 31.1** In case of any delay in execution of the order beyond stipulated date of delivery work schedule, including any extension permitted in writing, the Owner reserves the right to recover from the vendor a sum equivalent to ½ (half percent) of the value of delayed material/equipment or unperformed services for each week of the delay and part thereof subject to a maximum of 5% of the total value of the order.
- 31.2** Alternatively, the Purchaser reserves the right to purchase the materials/equipment from elsewhere at the risk and cost of the vendor and recover all such extra cost incurred by the purchaser in procuring the material by the above procedure.
- 31.3** Alternatively, the Purchaser may cancel the order completely without prejudice to his right under the alternatives mentioned above.

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32.0 DEMURRAGE, WHARFAGE ETC.

Any demurrage, wharfage or other expenses incurred after the consignment reaches the destination (railway godown or port or airport of CWC warehouse) due to delayed negotiations of dispatch documents or for any reason attributable to the seller shall be to the account of the seller/settler's Indian Agent, if applicable.

33.0 FORCE MAJEURE

33.1 Definition of Force Majeure

Force Majeure means any circumstances beyond the control of the parties, including but not limited to:

- a) war and other hostilities, (whether war be declared or not), invasion, act of foreign enemies, mobilization, requisition or embargo;
- b) ionizing radiation or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, radioactive toxic explosives, or other hazardous properties of any explosive nuclear assembly or nuclear components thereof.
- c) rebellion, revolution, insurrection, military or usurped power and civil war;
- d) riot, commotion or disorder, except where solely restricted to employees of the Contractor.
- e) On the occurrence of any unforeseen event, beyond the control of either Party, directly interfering with the delivery of Services arising during the currency of the contract, such as war, hostilities, acts of the public enemy, civil commotion, sabotage, fires, floods, explosions, epidemics, quarantine restrictions, strikes, lockouts, or acts of God, the affected Party shall, within a week from the commencement thereof, notify the same in writing to the other Party with reasonable evidence thereof. Unless otherwise directed by the PFC in writing, the contractor shall continue to perform its obligations under the contract as far as reasonably practicable and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event. If the force majeure condition(s) mentioned above be in force for 90 days or more at any time, either party shall have the option to terminate the contract on expiry of 90 days of commencement of such force majeure by giving 14 days' notice to the other party in writing. In case of such termination, no damages shall be claimed by either party against the other, save and except those which had occurred under any other clause of this contract before such termination.

34.0 SPECIFICATIONS, DRAWINGS & DATA

All drawings, data & documentation in respect of the ordered Items are an integral part of the Purchase Order. The Vendor will furnish all such drawings, data and documentation to the Purchaser. The schedule for submission of these documents by the vendor and the required no. of the copies shall be specified by the Purchaser. The Vendor shall ensure strict compliance with the schedule.

35.0 ADDITIONS/ALTERATIONS/MODIFICATIONS

The Owner reserves the right to make the additions/ alterations /modifications to the quantity of the items in the Purchase Order to the extent of $\pm 25\%$ of the value of the Purchase Order. Such an option shall be exercised by the Owner before completion of supplies under purchase order. The vendor shall supply such quantities also, at the same rate as originally agreed to and incorporated in the Purchase Order. If, however the additional work is at variance in design, size and specifications & is not already covered by the Purchase Order of the amendments therein, the rates for such additional work shall be negotiated & mutually agreed upon.

36.0 SUB-LETTING

The Vendor shall not sub-let, transfer or assign any part of this order without the prior written consent of the Purchaser. Copies of sub-contract order shall be forwarded to the Purchaser.

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37.0 INFORMATION PROVIDED BY THE PURCHASER

All drawings data & documentation that are given to the Vendor by the Purchaser for the execution of the order shall be the property of the Purchaser. The Vendor shall not make use of any of the above documents for any other purpose at any time except for the purpose of executing the order to the Purchaser. The Vendor shall not disclose above information to any person, firm corporate body and/or authority and shall use all endeavours to ensure that the above information is kept confidential.

38.0 PATENT RIGHTS

Royalties and fees for patents covering material/equipment or process used in executing the work shall be to the account of the Vendor. The Vendor shall satisfy all demands that may be made any time for such royalties and fees and he alone shall be liable for damages, infringement and shall keep the purchase indemnified in that regard. In the event, any equipments/material or part thereof supplied by the Vendor is involved in any suit or other proceedings held to constitute infringements, and its use is enjoyed, the Vendor, shall at his own expenses, either procure for the purchaser the right to continue the use of such equipment/material or replace it with a non-infringing material/equipment/or modify it so that it becomes non-fringing.

39.0 COMPLIANCE OF REGULATIONS

The Vendor shall warrant that all goods and services covered by the Purchase Order have been produced, sold, dispatched, delivered, tested and installed and are in strict compliance with all applicable laws, regulations including industries (development and regulations) Act 1951 and technical codes and requirements as applicable from time to time. Successful vendor shall ensure the compliance of the provisions of the carriage by Road Act 2007 & rules made hereunder.

The Vendor should execute and deliver such documents as may be needed by the Purchaser in evidence of compliance. All laws and regulations required to be incorporated by the Purchase Order are hereby deemed to be incorporated by this reference. Any liability arising out of contravention of any of the laws in executing the order shall be the sole responsibility of the Vendor.

40.0 CONTRACTOR'S DEFAULT

40.1 Notice of Default

If the Contractor is not executing the Works in accordance with the Contract or is neglecting to perform his obligations there under so as to seriously affect the programme for carrying out of the Works, the Purchaser may give notice to the Contractor requiring him to make good such failure or neglect.

40.2 Nature of Contractor's Default

If the Contractor:

- a) has failed to comply within a reasonable time with a notice under sub-clause 40.1, or
- b) assigns the Contract or sub-contracts the whole of the Works without the Employer's written consent or
- c) becomes bankrupt or insolvent and has a receiving order made against him or compounds with his creditors, or carries on business under a receiver, trustee or manager for the benefit of his creditors or goes into liquidation.

The purchaser may, after giving 15 days notice to the Contractor terminate the Contract and expel the Contractor from this Site.

Any such expulsion and termination shall be without prejudice to any other rights of powers of the Purchaser, or the Contractor under the Contract.

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The Purchaser may upon such termination complete the works himself or by any other Contractor. The Purchaser or such other Contractor may use for such completion any of the Contractor's equipment which is at the Site as he or they may think proper, and the Purchaser shall allow the Contractor a fair price for such use.

40.3 Valuation of Date of Termination

The Purchaser shall, as soon as possible after such termination, certify the value of the works and all sums then due to the Contractor as on the date of termination.

40.4 Payment after Termination

The Purchaser shall not be liable to make any further payments to the Contractor until the Works have been completed. When the Works are so complete, the Purchaser shall be entitled to recover from the Contractor the extra costs, if any, of completing the Works after allowing for any sum due to the Contractor under Sub-clause 43.0. If there is no such extra cost the Purchaser shall pay any balance due to the Contractor.

40.5 Effect on Liability for Delay

The Contractor's liability under clause 31.0 shall immediately cease when the Purchaser expels him from the Site without prejudice to any liability there under that may have already occurred.

40.6 The Vendor and each of his Members (Vendor's personnel) shall be jointly and severally liable to the Owner for the performance of the Works/ Services under this Contract and further for any loss suffered by the Owner as a result of a default of the Vendor or his members in such performance, subject to the following limitations:

- (a) The Vendor shall not be liable for any damage or injury caused by or arising out of the act, neglect, default or omission of any persons other than the Vendor's Personnel;
- (b) The Vendor shall not be liable for any loss or damage caused by or arising out of circumstances of Force Majeure; and
- (c) Limit of liability will be maximum to contract price.

41.0 SALE CONDITIONS

The order would constitute an entire agreement between the two parties thereto. With the Vendor's acceptance of the provisions of the Purchase Order, he waives and considers as cancelled any of this general/special sales conditions.

42.0 CANCELLATION

The Owner reserves the right to cancel the order in part or in full by giving one week advance notice thereby if:

- a) The Vendor fails to comply with any of the terms of the order.
- b) The Vendor becomes bankrupt or goes into liquidation.
- c) The Vendor makes general assignment for the benefit of the creditors; and
- d) Any receiver is appointed for the property owned by the Vendor.

43.0 DISPUTES AND ARBITRATION

43.1 The Purchaser & Service provider / Supplier shall make every effort to resolve amicably by direct informal negotiation, any disagreement or dispute arising between them under or in connection with the Contract.

43.2 If after thirty (30) days from the commencement of such internal negotiations, the Purchaser & Supplier have been unable to resolve amicably a contract dispute; either party may require that the dispute be referred for resolution to the formal mechanism specified below.

43.3 The dispute resolution mechanism to be applied shall be as follows:

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- (a) In the case of dispute between the Purchaser and bidder the dispute shall be referred to adjudication/ arbitration in accordance with Indian Laws.

43.4 The award given by the Arbitrator(s) shall be speaking award.

43.5 Work to Continue

Performance of the contract shall continue during arbitration proceedings unless the Purchaser shall order suspension. If any such suspension is ordered the reasonable costs incurred by the Contractor and occasioned thereby shall be added to the Contract Price.

43.6 No payments due or payable by the purchaser shall be withheld on account of pending reference to arbitration.

44.0 LAW AND PROCEDURE

44.1 Applicable Law

The law which is to apply to the Contract and under which the Contract is to be constructed shall be Indian Law. The Courts of Delhi shall have exclusive jurisdiction in all the matters arising in the Contract including execution of Arbitration Award.

45.0 ACCEPTANCE OF TERMS AND CONDITIONS

The Bidder must confirm his acceptance of the terms and conditions mentioned hereinabove and the enclosed documents. In case any clause is not acceptable to the Bidder, the same should be specifically brought out in deviation schedule given in the Bid Proposal Sheets with categorical confirmation that all other clauses are acceptable to the Bidder. If no mention is made in this regard, it shall be presumed that all clauses mentioned hereinabove are acceptable to the Bidder.

46.0 DAMAGE DUE TO CONTRACTOR'S NEGLIGENCE

46.1 If the Contractor or his Maintenance Engineer / Employee cause damage to the Equipment or any part thereof, the Contractor shall, upon receipt of notice in writing in that behalf from Owner/ Engineer, arrange to make the same good at his costs. The decision of the Engineer/ Owner in this regard shall be final and binding on the Contractor.

47.0 The successful bidder must ensure that the workforce (if any) to be deployed in PFC under the terms and conditions of this contract (after award of the contract), would be skilled through Recognition of Prior Learning (RPL) within two months from the date of commencement of contract at the cost of successful bidder.

48.0 Upon acceptance of contract on GeM portal, the successful bidder shall be liable to give unconditional access to Reserve Bank of India (RBI) for inspection including its books and accounts.

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ANNEXURE - II

SECTION INB
INSTRUCTION TO BIDDERS

1.0 GENERAL INSTRUCTIONS

1.1 Power Finance Corporation Ltd. (hereinafter called Owner) invites E-Bids in respect of **“Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years”** at Regd. Office at Urjanidhi, 1 Barakhamba Lane, Connaught Place, New Delhi – 110 001. All Bids shall be prepared and submitted strictly in accordance with these instructions.

1.2 The Owner reserves the right to itself to accept any Bid or reject any or all Bids or cancel/withdraw Invitation to Bid without assigning any reason for such decisions. Such decisions by the Owner shall bear no liability whatsoever consequent upon such a decision.

2.0 QUALIFYING REQUIREMENTS FOR BIDDERS

2.1 As mentioned in GeM bidding document and Special Conditions of Contract.

3.0 COST OF BIDDING

3.1 All the costs and expenses incidental to preparation and submission of the proposals, discussions including pre-award discussions with the successful Bidder etc. shall be to the account of the Bidders and the Owner shall not be responsible in any way whatsoever, and shall bear no liability whatsoever, on such costs and expenses, regardless of the conduct or outcome of the Bidding process.

4.0 INSPECTION OF SITE

4.1 The Bidders are strongly advised to visit the site for inspection before submission of their bid for practical assessment of the work to be undertaken in the contract.

5.0 DOCUMENT COMPRISING THE BID

5.1 The Bidder shall complete all the e-Bid Forms inclusive of Price Schedules, Schedule of Requirements etc. furnished in the RFP, indicating, for the products to be supplied and services to be rendered, a brief description of products and services, quantities and prices.

5.2 The Bidder shall also upload documentary evidence to establish that the Bidder meets the Qualifications Requirements as detailed in clause 2.0 above.

5.3 Scope of the Proposal

5.3.1 The scope of the proposal shall be on the basis of a sole responsibility of the bidder, completely covering all the materials and services specified under the accompanying RFP documents.

6.0 The bidder should also upload the under mentioned information:

The bidder should upload their information at Appendix - VI.

7.0 FORMAT AND SIGNING OF BID

7.1 The Bidder shall complete all the procedure and format of the bid through GeM portal.

7.2 Bids not confirming to the above requirements of Clause 7.0 may be disqualified.

8.0 BID PRICES

8.1 The Bidder shall indicate the total prices on GeM portal only as per **BoQ/ Scope of Work (details indicated in DTS-Detailed Technical Specifications)**.

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9.0 BID SECURITY

9.1 A Bid security i.e. EMD i.e. Rs. 36,000/- can be deposited in digital mode through following link:

<http://www.pfcapps.com/PaymentGateway/OnlinePaymentOther.aspx>

OR

The bidders may submit an unconditional irrevocable bank guarantee as per Clause 6 of GCC from any Nationalized Indian Bank or reputed commercial bank equivalent to Rs. 36,000/- in favour of Power Finance Corporation Ltd., New Delhi in the format furnished in Appendix - III.

OR

The bidders may submit Insurance surety bond amounting Rs. 36,000/-.

9.2 The Bid Security shall be made payable to the Owner without any condition. The Bank guarantee (towards Bid Security) shall be valid for a period of 6 (Six) calendar months from the date of opening of Bids which shall be extended from time to time as desired by the Purchaser.

9.3 The Bid security is required to protect the Owner against the risk of Bidders conduct which would warrant the security forfeiture pursuant to sub clause 9.4 Section INB.

9.4 If the successful Bidder fails to accept letter of award / purchase order, the Bid security amount shall be forfeited. Bid security amount may also be forfeited if a Bidder withdraws his Bid during the period of Bid validity.

9.5 The Bid security of all the Bidders except that of the successful Bidder will be returned within thirty (30) days after the Award of Contract or 15 days after the expiration of the period of Bid validity whichever is earlier.

9.6 Any Bid not accompanied by a Bid security in accordance with above provisions will be treated as non-responsive and will be rejected by the Owner.

9.7 No interest or any other cost will be payable by the Owner on the Bid security.

9.8 The Bid Security of the awardee agency shall be converted into Security Deposit and shall be released on the submission of contract performance security. No interest shall be payable by the Owner on the Security Deposit.

10.0 PERIOD OF VALIDITY OF BIDS

10.1 As per GeM portal. A Bid valid for a shorter period may be rejected by the Owner as non-responsive.

11.0 SUBMISSION OF BIDS TO THE OWNER

11.1 The Bidder shall submit the entire bids on GeM portal. The details of undertaking related to EMD shall be forwarded to us before the opening date of technical bid. However, scanned copy of the same to be uploaded in the system on GeM. The bids are to be uploaded on above portal in two parts i.e. Technical and Price bid. The technical bid should have all the technical details along with scanned copy of EMD. Price bid should have all price details.

11.2 Any Bid received by the Owner after the deadline for submission of e-Bids prescribed by the Owner, in the Invitation to Bid shall be automatically rejected by the system.

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12.0 WITHDRAWAL OF BIDS

- 12.1 No Bid may be withdrawn in the interval between the deadline for submission of Bids and expiration of the period of Bid validity. Withdrawal of a Bid during this interval shall result in the forfeiture of Bid Security of the Bidder pursuant to clause 9.4 Section INB.

13.0 OPENING OF THE BIDS BY THE OWNER

- 13.1 The Bids shall be opened by the Owner on/after scheduled bid opening date and time as specified in Invitation of Bids or in the case any extension has been given thereto, after the extended Bid submission date notified on e-tender portal/PFC portal.

14.0 PRELIMINARY EXAMINATION

- 14.1 The Owner will examine the Bids to determine whether they are complete, whether required Bid security has been furnished, whether Bidder fulfils the qualifying requirements and whether the Bids are generally in order.
- 14.2 Prior to detailed evaluation, the Owner will determine the substantial responsiveness of each Bid with reference to the Bidding documents. A substantial responsive Bid is one which confirms to all the terms and conditions of the Bidding documents without material deviation. The Owner's determination of Bids responsiveness will be based on the contents of the Bid itself.
- 14.3 A Bid determined as not substantially responsive will be rejected by the Owner and may not subsequently be made responsive by the Bidder by correction of the non-conformity.
- 14.4 The Owner may waive any minor informality or non-conformity or irregularity in a Bid which does not constitute a material deviation. The decision of the Owner with regards to the deviation being material or not shall be final and binding.

15.0 EVALUATION OF BIDS

- 15.1 The Owner will evaluate and compare the Bids previously determined to be substantially responsive pursuant to Clause 14.0.
- 15.2 The Bids submitted by the Bidders which do not meet the qualifying requirements as per Clause 2.0 Section INB will be treated as non-responsive and will be rejected.
- 15.3 The Bids shall be evaluated and compared on the basis of total price quoted on GeM portal for the entire Scope of Work defined in the Detailed Technical Specifications and as per GeM terms and conditions.

16.0 AWARD OF WORK

- 16.1 Notification of Award of Contract on GeM will be made on GeM portal to the successful Bidder by the Owner. The notification of award and submission of Contract Performance Security shall constitute the formation of Contract.
- 16.2 On account of indivisible nature of work, contract will be awarded on single responsibility basis only as per outcome of evaluation on GeM portal.
- 16.3 The Owner reserves the right, to accept any Bid (not necessarily the Bid having lowest Bid prices) or to reject any or all Bids or to cancel/withdraw the Invitation to Bid or to annul the Bidding process at any time prior to Award of Contract, without assigning any reason for such decision. Such decision by the Owner shall not be subject to question by any Bidder and the Owner shall bear no liability whatsoever consequent upon such a decision nor shall he have any obligation to inform the affected Bidder or Bidders of the grounds for the Owner's action.

17.0 CONTRACT PERFORMANCE GUARANTEE:

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Within 15 days of notification of award of the contract, as a Contract Performance Security, the successful bidder, to whom the work is awarded, shall be required to furnish a contract performance guarantee from (a) a Public Sector Bank or (b) a scheduled Bank, in favor of owner in the prescribed proforma or in form of Insurance Security bond. The guarantee amount shall be equal to 5% of the total contract price and it shall guarantee the faithful performance of the contract in accordance with the terms and conditions specified in these documents and specifications. The Contract Performance Guarantee shall be valid up to three months beyond the contract validity period or as specified on GeM. The contract Performance Guarantee shall be as per the provisions of GeM terms and conditions.

In case, the contractor does not submit performance security within the stipulated period without valid reason, the Owner shall impose simple interest @12% per annum on the full amount of applicable performance security (along with applicable taxes, if any) for the period of delay in submission in performance security. The interest on delayed period shall be calculated on pro rata basis for number of delayed days.

The interest accrued shall be payable by the contractor within 15 days from the date of intimation by Tender Inviting Authority in online or offline manner in favor of 'PFC Limited, otherwise the same shall be recovered from any payment due or become due against bills / any other amount lying with PFC.

Further, failure of the successful bidder to submit the above mentioned performance security shall constitute sufficient grounds for the annulment of award and forfeiture of the bid security.

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ANNEXURE II-A (MSME)

Preference to purchase from MSEs

Preference to purchase from MSEs will be given as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 as amended from time to time and its subsequent Orders/ Notifications issued in this regard.

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ANNEXURE II-B (MII)

Preference to purchase from Make in India

Preference to purchase from Make in India will be given as defined in per Public Procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued in this regard.

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ANNEXURE – III

Scope of Work/ Detail Technical Specification

1 General Information

1.1 Introduction

The Power Finance Corporation Ltd. aims at utilizing Information Technology for automating its offices to achieve its business objectives and long-term goals, including attaining higher levels of operational efficiency, growth in business, and improving profitability. PFC is seeking a proposal for the renewal of ATS support services for the HPE StoreOnce 3640 Backup Appliance, Backup Server and HP LTO-8 Tape Library, for a period of two (2) years.

The Power Finance Corporation Ltd., New Delhi & its subsidiaries, hereinafter called 'PFC' or 'OWNER' will receive bids for the renewal of ATS support services for the HPE StoreOnce 3640 Backup Appliance, Backup Server and HP LTO-8 Tape Library for a period of two (2) years in this Request for Proposal (RFP). All bids shall be prepared and submitted in accordance with these specifications and requirements. In case of any discrepancy between the provisions of this Section-DTS and other Sections/ Volumes, the provisions of this section shall prevail.

This RFP, plus any other documents released, the information provided, discussions, etc., as part of the selection process, are strictly confidential and should not be divulged to anyone who is not directly involved in the preparation of the response. Additionally, all information within this proposal or gained during the RFP or other processes will be kept confidential by the vendor. No information or publicity will be allowed to any third party unless specific written authorization is obtained from the Owner.

List of PFC Location covered for the subject requirement is as below:

Sr. No.	Office Name	Location
1.	PFC Head Office,	'Urjanidhi', 1, Barakhamba Lane Connaught Place, New Delhi-110 001

1.2 Objective of this RFP

PFC intends to procure the renewal of ATS support services for the HPE StoreOnce 3640 Backup Appliance, Backup Server, and HP LTO-8 Tape Library for a period of two (2) years, effective from the respective end-of-support dates as tabulated below.

The details are tabulated below:

S.No	Product	Model/Serial no.	Qty	Existing End of Support
1	Backup Server	HPE Proliant DL160 Gen10 (SGH925V8ZV)	1	21-Aug-26
2	Backup Appliance	HPE StoreOnce 3640 (SGH1153J01)	1	09-Jun-26
3	Tape Library	HPE StoreEver MSL3040 (DEC10802JY)	1	09-Jun-26

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2 Scope of Work

The scope of work for the bidder during the period of contract/ engagement would include below:

2.1 Comprehensive ATS Support Services

- a) ATS support for the HPE StoreOnce 3640 Backup Appliance, Backup Server, and HP LTO-8 Tape Library for a period of two (2) years.
- b) Coverage to include Hardware, Software, Firmware, Upgrade, Patches & Premier support.
- c) Validation of renewed licenses, support and activation across appliances.
- d) License entitlement documentation and registration on the OEM portal.

2.2 Preventive & Corrective Maintenance

- Quarterly Periodic preventive maintenance to ensure optimal system performance.
- Corrective maintenance and resolution of hardware/software issues as and when required.

2.3 Firmware / Software Updates, upgrades & Patches

- Provision of the latest OEM-released updates, upgrades, patches and security patches during the support period.
- Assistance in implementing patches to minimize downtime and security risks.

2.4 Technical Assistance

- 24x7x365 OEM technical support (remote and onsite, as per service level agreement).
- Six (6) Hour CTR Premier Support.
- Escalation and resolution of issues within agreed timelines.

2.5 Parts Replacement & Repair

- Replacement of defective parts and components with OEM parts.
- Timely repair/replacement as per section 2.4 & SLA to ensure operational continuity.

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3.0 Evaluation Criteria:

3.1 Bid Evaluation Methodology

Only those bids, which have been determined to be substantially responsive and meet the eligibility criteria as per the “Minimum Qualifying Requirements & Technical Specification” and are complete in all respects, will proceed to next stage of financial bid evaluation.

Stage – I Minimum Qualifying Requirements & Technical Specification

Bidder should submit documentary evidence in respect of all below mentioned criteria while submitting the proposal. Vendors whose Proposal do not fulfil the below mentioned criteria or who fail to submit documentary evidence to the satisfaction would be rejected.

Note 1: “Similar work” - means that the bidder has successfully executed Supply/Installation/Support/Configuration/Maintenance of Backup Appliance / Backup Software / Backup Server / Tape Library for Central/ State/ Govt. Organization/PSUs/ Public Listed Company or its holding/ subsidiary company

Note 2: “Documentary evidence” for satisfactory completion / execution of work will include:

- a) Letters of award from clients for each project along with Completion certificate issued by the client/ Third party inspection agency (or)
- b) Letter of award along with atleast 90% payment receipt duly attested by CA/auditor/Authorized bid signatory/ Third party inspection agency (or)
- c) Valid document for intimation of award: Copy of invoice raised and proof of receipt of atleast 90% payment for an order duly attested by CA/auditor/Authorized bid signatory/Third party inspection agency.
- d) In case of Non-Disclosure Agreement (NDA) executed with the client,
 - (i) Award & Completion certified by TPIA covering all the criteria of the RFP clause or
 - (ii) Award & On-going work certified by TPIA covering all the criteria of the RFP clause

In case of any other document, the same shall be considered with the approval of competent authority while taking approval for opening of financial bid.

Note 3: “Last Financial Year” means the financial year immediately preceding the financial year in which the tender document has been published on GeM.

Criteria	S No	Detailed Requirement	Supporting Document
Organizational	i.	Bidder should have valid PAN, GST registration as on bid submission date.	Copy of PAN & GST registration duly attested by authorized bid signatory.
	ii.	The Bidder should have Registered Office/ Head Office/ Branch Office in Delhi/NCR.	Valid proof of office in Delhi/NCR duly attested by the authorized bid signatory.
Financial	iii.	Average Annual Turnover of the Bidder should be minimum Rs. 18 lakhs during last three financial years.	Copy of audited Balance Sheet and Profit & Loss account or CA certificate should be submitted. In case the audit is ongoing for last FY, provisional statements duly attested by CA/ statutory auditor should be submitted.
	iv.	Bidder should have a positive Profit Before Tax (PBT) or Net worth in at least two of the last three financial years.	

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Criteria	S No	Detailed Requirement	Supporting Document
Experience	v.	A Company/ Firm/ LLP registered in India for a period of at least three (3) years before the bid submission date and; Minimum three years' experience in execution of similar works as on the last date of bid submission.	Copy of Certificate of Incorporation/ other relevant document duly attested by authorized bid signatory and Copy of Purchase Order along with execution proof showing minimum three years' experience.
	vi.	The bidder must have successfully completed similar work during last three financial years and up to bid submission date as per below criteria: (i) Three similar completed works, each costing not less than the amount of Rs. 7.01 lakhs; or (ii) Two similar completed works each costing not less than the amount of Rs. 8.77 lakhs ; or (iii) One similar completed work each costing not less than the amount of Rs. 14.02 lakhs.	Documentary evidence should be submitted.
	vii.	Bidder must not stand declared ineligible/ blacklisted/ banned/ debarred by any PSU/ Ministry/ Govt. organization from participation in its Tender Processes.	Undertaking to be submitted on letterhead of the company duly signed by Authorized bid signatory, as per PFC format.
	viii.	The Bidder should be OEM or Authorized Partner/ Distributor/ System Integrator of the OEM(s) of the offered product(s). Note: Either OEM or Authorized Partner/ Distributor/ System Integrator of the OEM(s) only can participate in the Bid/ Tender. If both participates in this Bid/Tender, then the bid of both bidders will not be considered and both the bids will be technically disqualified.	Bidder to submit documentary proof (MAF), specifically in reference to this bid, duly signed by OEM's.

Relaxations if applicable for MSME or start-up companies on the above mentioned qualifying requirements shall be as per applicable norms.

The proposals meeting to the above MQR will be considered for further evaluation. Bidder should provide the supporting documentary evidence, with respect to the above, in the absence of which their proposals may be rejected.

Stage – II: Commercial Evaluation

Commercial evaluation criteria are as following:

- Only bidders meeting the minimum qualifying criteria will be eligible for financial bid evaluation.
- The Financial bids of ineligible bidders will not be opened.

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- The Bidder who quoted the lowest total bid price after RA will be considered as successful Bidder. In case, multiple bidders quoted the same price, PFC's decision to award the contract shall be final and binding to the bidders. Further, provision of selection of L1 bidder shall be followed as per GeM, if any.

Company reserves the right to accept or reject any bid and to cancel the bidding process and reject all bids at any time prior to award of Contract, without thereby incurring any liability to the affected bidder or bidders or any obligation to inform the affected bidder or bidders on grounds for the company's such action.

4.0 Malicious Code Certificate:

The seller should upload following certificate in the bid:-

(a) This is to certify that the Hardware and the Software being offered, as part of the contract, does not contain Embedded Malicious code that would activate procedures to:-

- (i) Inhibit the desires and designed function of the equipment.
 - (ii) Cause physical damage to the user or equipment during the exploitation.
 - (iii) Tap information resident or transient in the equipment/network.
- (b) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copyright and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software

5.0 Exit Clause

This clause sets out the provisions, which will apply on completion of contract or pre-closure /termination of the Technical Services with bidder.

The bidder shall submit the "Exit Plan" undertaking as per the enclosed Performa in this tender document.

6.0 IT Outsourcing Compliance Undertaking

The bidder should comply with IT outsourcing compliance requirements relevant to the scope of tender document.

The bidder shall submit the "IT Outsourcing Compliance" undertaking as per the enclosed Performa in this tender document.

7.0 Outsourcing of Cloud Computing Services

Service provider shall ensure compliance with *Usage of Cloud Computing Services* of the RBI's Master Directions on Outsourcing of Information Technology Services, 2023, as amended from time to time, where any services pertaining to cloud computing are outsourced by PFC to the service provider and in this regard, the service provider shall:

- (i) take into account the cloud service specific factors including but not limited to multi-tenancy, multi-location storing, processing of data etc. as well as attendant risks, while establishing appropriate risk management framework;
- (ii) ensure that the cloud security best practices are followed for implementing necessary controls;

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- (iii) ensure that the service and technology architecture supporting cloud-based applications is built in adherence to globally recognized architecture principles and standards;
- (iv) prefer a technology architecture that provides for secure container-based data management, where encryption keys and hardware security modules are under the control of service provider;
- (v) ensure that the architecture should provide for a standard set of tools and processes to manage containers, images and releases and the architecture is resilient and enable smooth recovery in case of failure of any one or combination of components across the cloud architecture with minimal impact on data or information security;
- (vi) ensure that multi-tenancy environments are protected against data integrity and confidentiality risks, and against co-mingling of data;
- (vii) agree on an identity and access management with PFC and ensure for providing role-based access to the cloud hosted applications, in respect of user-access and privileged-access;
- (viii) ensure to establish stringent access controls, as applicable for an on – premise application, for identity and access management to cloud-based applications;
- (ix) implement segregation of duties and role conflict matrix for all kinds of user-access and privileged-access roles in the cloud-hosted application irrespective of the cloud service model;
- (x) ensure that access provisioning shall be governed by principles of ‘need to know’ and ‘least privileges’;
- (xi) ensure that multi-factor authentication is implemented for access to cloud applications;
- (xii) ensure that the implementation of security controls in the cloud-based application achieves similar or higher degree of control objectives than those achieved in or by an on-premise application of PFC and this would include ensuring secure connection through appropriate deployment of network security resources and their configurations, appropriate and secure configurations, monitoring of the cloud assets utilised by PFC, necessary procedures to authorise changes to cloud applications and related resources;
- (xiii) ensure that the minimum monitoring requirements in the cloud environment as required by PFC are always met;
- (xiv) maintain an information security policy framework commensurate with its exposures to vulnerabilities and threats;
- (xv) maintain its information or cyber security capability with respect to changes in vulnerabilities and threats, including those resulting from changes to information assets or its business environment;
- (xvi) ensure that the nature and frequency of testing of controls by it are in line with the materiality of the services being outsourced by PFC and the threat environment;
- (xvii) put in place mechanisms to assess the sub-contractors with regards to confidentiality, integrity and availability of the data being shared with the sub-contractors, where applicable;
- (xviii) ensure appropriate integration of logs, events from service provider into PFC security operations centres, or retention of relevant logs in cloud has been ensured for incident reporting and handling of incidents relating to services deployed on the cloud;
- (xix) ensure continuous and regular updates of security-related software including upgrades, fixes, patches and service packs for protecting the application from advanced threats and/or malware;
- (xx) have a well-governed and structured approach to manage threats and vulnerabilities supported by requisite industry-specific threat intelligence capabilities;
- (xxi) put in place demonstrative capabilities for preparedness and readiness for cyber resilience as regards cloud services in use by it, which shall be systematically ensured, inter alia, through robust incident response and recovery practices including conduct of disaster recovery drills at various levels of cloud services including necessary stakeholders; and
- (xxii) subject to applicability and cloud usage, ensure that the audit or periodic review or third-party certifications of service provider cover the roles and responsibilities of service provider in cloud governance, access and network controls, configurations, monitoring mechanism, data

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encryption, log review, change management, incident response, and resilience preparedness and testing etc.

8.0 Protection of Sensitive Information.

- a. To protect the Owner organization's sensitive information, it must be imposed that the acquired information through phishing exercise should never be shared to any entity/person other than the stipulated owners of the subject work. Especially, it is very important to safeguard the corporation's information from exposure/sharing to any non-Indian entity/person or having foreign links. In this regard, the bidder is required to identify and deploy resources of Indian origin only. An undertaking in this regards shall be submitted by the bidders.
- b. **Nondisclosure agreement:** The successful bidder firm & the proposed information system (personnel) should enter into a nondisclosure agreement and the same needs to be furnished along with the acceptance of the work.

9.0 Interpretation of the clauses in the Tender Document / Contract Document

In case of any ambiguity/ dispute in the interpretation of any of the clauses in this Tender Document, the interpretation of the clauses by PFC shall be final and binding on all parties.

10.0 Payment Terms

Payment will be made on submission of proper invoice along with necessary supporting documents as below:

Yearly advance payment of 100% of the total yearly value for items listed in the Bill of Materials (BOM) shall be made within 15 days from receipt of invoice in PFC subject to following conditions:-

1. Submission of CPG
2. Submission of valid document for renewal of ATS/support and updation of the same on the OEM support portal
3. Satisfactory certification by the Project In-charge of PFC IT Infrastructure and deduction of any applicable penalties.

11.0 Service Level Agreement for support services

The services provided by the vendor will be covered in defined SLA under different categories of severity, response & resolution time. The vendor has to provide the services within the boundaries of the defined SLAs.

- (i) Vendor has to ensure 99.9% of uptime for all the equipment & services provided. Uptime will be monitored & calculated with the issue/incident reporting time to the closing of the incident.
- (ii) In case tele-support service is unable to resolve the issue within defined SLA timelines then a service engineer should be deputed on priority basis for on-site resolution if required.

Severity	Definition
P1	Critical/Fatal case the incident/problem, critical System failure that effects the entire Datacenter / IT services.

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	Response Time: 1 Hours
	Resolution Time: 6 Hours
P2	System Problem the incident/problem has significant impact on business operations & large number of users, critical business functions are affected will fall in this category. For example, Datacenter / IT services.
	Response Time: 1 Hours
	Resolution Time: 8 Hours
P3	Moderate Problems: A problem that affects a very limited no. of users, which is not business critical. For example, some Planned installations, migrations, up-gradations, capacity addition and changes to software inventory etc.
	Response Time: 2 Hours
	Resolution Time: 12 Hours

12.0 Penalty

There will be deduction of 1% of total yearly invoice value on every breach of SLA, subject to maximum of 5% deduction.

13.0 Termination of Contract:

The total contract period is 2 year. However, contract will be reviewed at the end of 1st year for satisfactory performance by Indenting Unit.

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ANNEXURE - IV

Schedule - 1

QUALIFYING REQUIREMENT DATA

List of major clients for “**Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years**” shall be uploaded in technical part of the bid in the following prescribed proforma.

[illegible]

For and on behalf of.....
 Name.....
 Designation.....
 Stamp.....

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

Schedule - 2

TECHNICAL DEVIATIONS

Technical Deviations for “**Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years**” shall be uploaded through e-procurement in the following prescribed proforma.

The following are the Technical deviations and variations from the specifications and documents against Detail Technical Specification of Tender Bid No. **02:09:197:I:25-26:ATS dated 26-Nov-2025**. These deviations and variations are exhaustive. Except these deviations and variations the entire work shall be performed as per PFC’s specifications and documents.

Sl. No.	Section	Clause No.	Page No.	Statement of deviations and variations

In case this format is submitted blank or not submitted along with the bid, it shall be treated as no deviation from tender terms and conditions.

For and on behalf of.....
Name.....
Designation.....
Stamp.....

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

Schedule - 3

COMMERCIAL DEVIATIONS

Commercial Deviations for “**Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years**” shall be uploaded through e-procurement in the following prescribed proforma.

The following are the Commercial deviations and variations from the specifications and documents against Specification Tender Bid No. **02:09:197:I:25-26:ATS dated 26-Nov-2025**. These deviations and variations are exhaustive. Except these deviations and variations the entire work shall be performed as per PFC’s specifications and documents.

Sl. No.	Section	Clause No.	Page No.	Statement of deviations and variations

In case this format is submitted blank or not submitted along with the bid, it shall be treated as no deviation from tender terms and conditions.

For and on behalf of.....
Name.....
Designation.....
Stamp.....

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

**ANNEXURE – V
(Price Bid)**

Financial Bid Summary (To be submitted along with price part only)

Financial document to be uploaded in Price Part of the Bid on GeM portal. Bid is liable for outright rejection, in case this price bid is submitted in technical part of the bid.

Prices in INR (₹)

S.No	Product	Model/Serial no.	Qty	Cost of First Year inclusive of taxes in ₹	Cost of Second Year inclusive of taxes in ₹
1	Backup Server	HPE Proliant DL160 Gen10 (SGH925V8ZV)	1		
2	Backup Appliance	HPE StoreOnce 3640 (SGH1153J01)	1		
3	Tape Library	HPE StoreEver MSL3040 (DEC10802JY)	1		
Total amount inclusive of Taxes					<i>This figure must match with price quoted on GeM portal</i>

Authorized Bid Signatory

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

APPENDIX - I

(To be submitted on the Bidder's letter head)

M/s. Power Finance Corporation Ltd.
“Urjanidhi”, 1, Barakhamba Lane,
Connaught Place,
New Delhi-110 001.

Subject Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

Dear Sir,

With reference to your Bid reference No. **02:09:197:I:25-26:ATS** dated **26-Nov-2025** for “**Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years**”, we hereby confirm that we have read the provisions of the bid documents and further confirm to accept all the terms and conditions contained in the bid documents except those against which we have taken deviation in the respective schedules.

Further, we hereby undertake to register (Name of Bidder) on TReDS portal for PFC.

Thanking you.

Yours faithfully,

For and on behalf of.....
Name.....
Designation.....
Stamp.....

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

APPENDIX - II

(To be submitted on the Bidder's letter head)

UNDERTAKING

We do hereby undertake that we have not been declared as ineligible/ blacklisted/ banned/ debarred by any PSU/ Ministry/ Govt. organization from participation in its Tender Processes.

Yours faithfully,

For and on behalf of.....
Name.....
Designation.....
Stamp.....

**ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8
Tape Library for a period of two (2) years**

APPENDIX - III

**PROFORMA FOR BANK GUARANTEE FOR BID GUARANTEE / CONTRACT PERFORMANCE
GUARANTEE**

As per GeM Format

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

APPENDIX - IV

LETTER OF AUTHORITY – PROFORMA

(To be furnished on the Bidder’s Letter head)

Power Finance Corporation Ltd.
“Urjanidhi”
1 Barakhamba Lane,
Connaught Place,
New Delhi-110001.

Dear Sir,

Ref.: Specification No.....

In continuation with your above captioned invitation to Bid, Mr.
.....

(Full Name along with designation)
(Telephoneand Mob.....)
is authorized to quote, sign, submit, reply, clarify the bid on our behalf and shall be binding as the same has been made by us. This authority shall remain valid and binding until revoked with notice to you.

Yours faithfully,

For and on behalf of.....
Name.....
Designation.....
Stamp.....

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

APPENDIX – V

**UNDERTAKING
BIDDER FINANCIAL STANDING**
(To be furnished on the Bidder’s Letter head)

We do hereby undertake that we are not under liquidation, court receivership or similar proceedings, and bankrupt.

Yours faithfully,

For and on behalf of.....
Name.....
Designation.....
Stamp.....

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

APPENDIX - VI

Vendor Profile Form

Vendor Profile Form				
1	Name & Legal Status of the Bidder			
2	Organization Registration Details (Incorporation or Commencement of Business/ Other Statutory Registrations etc.)		Date of Incorporation/ Registration:	
3	GST Number:		PAN Number:	
4	Registered/ Corporate office Address of Bidder			
	Address & Contact Details (E-Mail, Ph. Nos. etc.) of Proprietor/ Directors of the Bidders	1)	DIN No.	
		2)	DIN No.	
		3)	DIN No.	
	Delhi (NCR) Office Address if any & Contact Details:			
	Names and Designations of the persons authorized for single point interaction with PFC Ltd.			
	Mobile Numbers of Contact persons:		E-mail of Contact persons:	
5	MSME Registration:	(Yes/No)	If Yes, Regd. No.:	
			Date:	
			Category:	
			Range of Supply/ Services:	
	GeM (Government e-Marketplace) Registration:	(Yes/No)	If Yes, Regd. No.:	
			Date:	
			Category:	
			Range of Supply/ Services:	
	TReDS (Trade Receivables Discounting System) Registration:	(Yes/No)	If Yes, Regd. No:	
			Date:	

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

Vendor Profile Form			
		Category:	
		Range of Supply/ Services:	
Whether SC/ST/OBC Entrepreneur? (Yes, No)	(Yes/No)	(If Yes, Please provide Supporting Documents)	
Whether Women Entrepreneur? (Yes/No)	(Yes/No)	(If Yes, Please provide Supporting Documents)	

Note:

In case of non-furnishing the required MSME registration details, benefits of MSE will be not allowed presuming the agency a non-MSE Entrepreneur.

For and on behalf of.....
 Name.....
 Designation.....
 Stamp.....

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

APPENDIX - VII

(To be submitted on the Bidder's letter head)

Undertaking

To whomsoever it may concern

It is submitted that our organization is registered in India and not having any righteous foreign link to share the Information relating to the _____ for PFC Tender Reference Number: _____.

It is further submitted that the resources proposed to be deployed for the _____ work shall only be of Indian Origin.

For and on behalf of.....
Name.....
Designation.....
Stamp.....

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

APPENDIX - VIII

UNDERTAKING
(To be furnished on the Bidder's Letter head)

Power Finance Corporation Ltd.
"Urjanidhi"
1 Barakhamba Lane,
Connaught Place,
New Delhi-110 001.

Subject: Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

Dear Sir,

With reference to your GeM Bid Number: _____ Dated: _____ for **"Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years"**, in case we are found L-1 on GeM portal and contract is awarded to us, we hereby undertake not to withdraw the offer within bid validity period and shall supply the product / services in the manner as mentioned in bidding document without any objection/ variation, failing in which suitable action can be taken against our company i.e.(name of bidding company)..... including debarment from PFC future procurement for two years period and suspension of our company account on GeM portal among others.

Yours faithfully,

For and on behalf of.....
Name.....
Designation.....
Stamp.....

UNDERTAKING
(To be furnished on the Bidder's Letter head)

UNDERTAKING FOR NOT TO SUB-CONTRACT/ OUTSOURCE/ DEPLOY OUTSOURCED
MANPOWER

We do hereby undertake that no work/ part of the work under this contract shall be sub-contracted/ outsourced/ managed by deploying outsourced manpower and that only we and/or our employees will perform the work.

Yours faithfully,

For and on behalf of.....
Name.....
Designation.....
Stamp.....

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

APPENDIX – X

UNDERTAKING

(To be furnished on the Bidder’s Letter head)

“We do hereby undertake that none of the Directors/Senior officers of Owner or his relative(s) is interested in our Company/firm as a major shareholder/ director/ manager/ employee / guarantor / partner.”

List of Directors of ‘Power Finance Corporation Limited’ may be taken from its website www.pfcindia.com ", and Senior Officers means the Bid inviting authority as per tender documents.

Yours faithfully,

For and on behalf of.....
Name.....
Designation.....
Stamp.....

(To be submitted on the Bidder's letter head)

UNDERTAKING FOR EXIT PLAN

To whomsoever it may concern

Exit Strategy - The contractor/Service Provider shall submit an “Exit Plan” as part of the bid document, which can be further reviewed and matured on mutual agreement basis before end of service/contract.

Exit Plan:

1. The Exit Plan sets out the contractor's proposed methodology for achieving a methodical transition of services from the contractor to PFC and/or its Replacement Contractor on the expiry or termination of contract/ agreement.
2. The Exit Plan should contain, separate mechanisms for dealing with “Ordinary Exit” and “Emergency Exit”. The “Exit” provisions shall be prepared on the basis of level of assistance required on the type of exit.
3. The Service Provider shall acknowledge that it shall be legally obliged to cooperate fully with both PFC and new Service Provider(s) to ensure there is a smooth transition. Further, the Service Provider shall acknowledge that it is prohibited from erasing, purging, revoking, altering or changing any data during the transition period, unless specifically advised by PFC or required by the regulator.
4. Exit Plan shall cover below:
 - (i) Methodology for service transfer to PFC or replaced contractor including details of the processes, documentation, data transfer, systems migration, security and the segregation of the PFC's technology components from any technology components operated by the contractor or its Sub-contractors (wherever applicable);
 - (ii) Transfer of complete knowledge of the assignment and work carried out vide hardcopy/ softcopy. Knowledge transfer to PFC identified/ appointed resources shall be carried out within 15 days prior to actual exit.
 - (iii) Information associated w.r.t. tools, licenses, hardware and software used during the course of engagement.
 - (iv) All associated documentation comprising of collection of information & findings related to the scope of work.
 - (v) Approach and methodology to render services during the Transition Period.
 - (vi) Procedures to deal with requests made by the PFC and/or a Replacement Contractor for Staffing Information (Staff Transfer).
 - (vii) Plan to identify critical issues for providing the Termination Services.
 - (viii) Management structure to be put in place and employed during the Transition Period

Authorized Bid Signatory

APPENDIX - XII

Malicious Code Certificate
(To be furnished on the Bidder’s Letter head)

- (i) This is to certify that the Hardware and the Software being offered, as part of the contract, does not contain Embedded Malicious code that would activate procedures to :-
 - (a) Inhibit the desires and designed function of the equipment.
 - (b) Cause physical damage to the user or equipment during the exploitation.
 - (c) Tap information resident or transient in the equipment/network.
- (ii) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copyright and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software.

Yours faithfully,

For and on behalf of.....
Name.....
Designation.....
Stamp.....

(To be submitted on the Bidder's letter head)

IT Outsourcing Compliance Undertaking

To whomsoever it may concern

The “Bidder” or the “Service Provider” undertakes, agrees, confirms and acknowledges that it shall comply with provisions of the Reserve Bank of India (RBI) Master Directions on Outsourcing of Information Technology Services, dated April 10, 2023 as amended, modified or substituted from time to time, (“RBI Master Directions on IT Outsourcing”) at all times during the provision of services being [insert the relevant services] as well as subsistence of this Request for Proposal (“RFP”) or any agreement signed pursuant to the RFP and further undertakes, agrees, confirms and acknowledges the following in this regard:

1. The Service Provider shall ensure that Power Finance Corporation (“PFC” or the “Financial Service Provider”) shall have access to all data, books, records, information, logs and business premises relevant to the scope, available with the Service Provider pertaining to the scope in relation to the activities covered under the RFP or any agreement signed pursuant to the RFP.

2. Sharing of information :

2.1 The Service Provider shall preserve / maintain the documents, data and records in relation to the work in accordance with the applicable laws relating to PFC and/or as per directions of PFC in writing in this regard. The Service Provider shall not share any data with anyone, unless specifically permitted by PFC under the RFP or the documents entered into pursuant to the RFP or otherwise agreed in writing.

3. Segregation of the information by the Service Provider:

3.1. The Service Provider shall segregate and keep separately all information, documents, properties, assets, monies and records pertaining to the work/services provided by the Service Provider, PFC and customers of PFC as also hold the same in trust for PFC and customers of PFC.

3.2. The Service Provider shall ensure that it is able to isolate the information, documents, records, record of transactions, assets, properties, monies and records belonging to PFC at all times, such that, in adverse conditions or termination of the contract the same can be removed from the possession of the Service Provider or deleted, destroyed or rendered unusable as may be required by PFC.

4. Return/Destruction of the resources:

4.1. The Service Provider shall ensure that all information assets of PFC are handed over to its resources during the course of the contract (plus any copies made thereafter, including backups and archives) are duly returned and/or destroyed.

4.2. The Service Provider and the Service Provider's personnel or other affiliated persons or entities, at no additional cost to PFC, shall return (or at PFC's sole discretion destroy) all properties, documents, data, information, confidential information and analysis handed over by PFC or customers of the PFC to the Service Provider during the term of the engagement of the Service Provider and shall provide all reasonable assistance for transfer of any ongoing services to PFC or any succeeding Service Provider nominated by PFC.

4.3. In the event returning or destroying of the proprietary and confidential information is not feasible, the Service Provider must inform PFC of the conditions that make return, deletion or destruction infeasible, in which case, the Service Provider must continue to protect all proprietary and confidential information that it retains as per the direction provided by PFC and agree to limit further uses and disclosures of such information to those purposes permitted by PFC.

5. Inspection and Audit

5.1. The Service Provider and Third Party Service Providers shall be subject to periodic audits/ computer security audits performed by or on behalf of PFC. The periodicity of these audits will be decided at the discretion of PFC. These audits will be conducted by internal/external auditors appointed by PFC/ inspecting official from

ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

the RBI or any regulatory authority, covering the risk parameters finalised by PFC/ such auditors in the areas of products (IT hardware/ software) and services etc. provided to PFC. The Service Provider shall submit certification received from such auditors to PFC as well as copies of any audit or review reports and findings made about the Service Provider or any Third Party Service Provider by any third party in connection with the services performed for PFC. The Service Provider and Third Party Service Providers (if allowed by PFC) shall facilitate the same.

5.2. The Service Provider acknowledges that PFC shall be entitled to make its expert assessment on the efficiency and effectiveness of the security, control, risk management, governance system and process created by Service Provider. The Service Provider shall, whenever required by PFC or its auditors or other third parties authorised by PFC to carry out any audit of the Service Provider or its services, furnish all relevant information, records and data to them. The Service Provider shall afford PFC's representatives access to Service Providers' premises, data, equipment, facilities, installations, technical resources, operations, documentation, records, databases and personnel and shall fully cooperate for completion of such audit.

5.3. Where any deficiency has been observed during the audit of Service Provider on the risk parameters finalised by PFC or in the certification submitted by the auditors, the Service Provider shall correct/ resolve the same at the earliest and shall provide all necessary documents related to resolution thereof and the auditor shall further certify in respect of resolution of the deficiencies. The Service Provider shall provide certification of the auditor to PFC regarding compliance of the observations made by the auditors covering the respective risk parameters against which such deficiencies observed.

5.4. Without prejudice to the above, the Service Provider shall whenever required, furnish all relevant information, records/data to PFC, auditors and/or inspecting officials of PFC/ RBI and/or any regulatory authorities and PFC RBI and/or any regulatory authorities shall have the right to call for and/or retain any relevant information / audit reports on financial and security reviews with their findings undertaken by Service Provider.

6. Reporting

The Service Provider shall promptly and without any delay report to PFC, immediately on the occurrence of any breach of data, unavailability of the services, on any material adverse event, or any such event or consequence of any event or circumstance which is or is likely to cause an effect which is likely to: (i) adversely impact the ability of the service provider ,third party service provider or any person to perform or comply with any of their respective obligations under the RFP or any document entered into as a result of the RFP, in accordance with their respective terms; or (ii) be prejudicial to any of the businesses, operations or financial condition of the service provider, third party service provider, PFC and its customers, or any person who is party to any document entered into as a result of the RFP.

7. Incident Notification and Monitoring

7.1. Notwithstanding the requirement of reporting as stipulated above, the Service Provider shall on an urgent and immediate basis, without any delay, notify PFC of any bribery matter, breach of security, any technical failure, service blackout, cyber incident or leakage of any information including any confidential information pertaining to PFC and the customers of PFC, to enable PFC to take requisite mitigation measures immediately and report the same to the RBI/other regulatory authorities as may be required under applicable laws. The Service Provider shall ensure that such reporting shall be done in such a manner that PFC reports the detection of any of the aforesaid incidents by the Service Provider or the Third Party Service Providers to the Reserve Bank of India within six hours of the detection and in compliance with the applicable laws.

8. Legal Compliance

8.1. The Service Provider is, and shall be, in compliance, in all respects, with all Applicable Laws, in relation to the transactions contemplated under the RFP and any other document executed pursuant to the RFP including all labour laws, anti-discrimination laws including the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, data privacy requirements laid out in the Information Technology Act 2000, the Digital Personal Data Protection Act 2023 and the Rules made thereunder, and other codes of conduct prescribed by PFC, any law or authority or association, guidelines applicable to outsourcing issued by RBI / other regulators / association, all applicable laws, extant policies and guidelines specified by PFC or any authorities, each as amended, supplemented or replaced from time to time.

9. Confidentiality

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9.1. The Service Provider will have access to the information which includes but is not limited to, any commercially sensitive, proprietary or otherwise confidential information relating to PFC, its affiliates, related business entities and its customers, such as proprietary and confidential matters concerning certain know-how, data and/or other matters related to the current and proposed operations of PFC, its affiliates, related business entities, and vendors, security and financial information, know how, technical data, drawings, designs, software, hardware, tapes, inventions, developments, processes, technology information, marketing strategies, targeting methods, business objectives and any information relating to the pricing, and research development or related information to which the Service Provider, Third Party Service Provider or personnel has gained access in connection with or pursuant to the RFP and the agreements entered into pursuant to the RFP, or any other information which is specifically designated in writing as confidential, or any information that would be understood by the parties, exercising reasonable business judgment, to be confidential (“**Confidential Information**”) and the Service Provider shall ensure that it will maintain and protect the nature and integrity of the Confidential Information.

9.2. The Service Provider shall maintain the secrecy and confidentiality of any Confidential Information and/or related information to which the Service Provider has gained access in connection with the RFP and the agreements entered into pursuant to the RFP.

9.3. The Service Provider and its employees and Service Provider’s agents and subcontractors and their employees, shall not, without the prior written consent of PFC, disclose any Confidential Information to any third party, either orally or in writing, unless such disclosure is:

9.3.1. required for performance of its obligations under the RFP and the agreements entered into pursuant to the RFP;

9.3.2. is required to be disclosed to professional advisors, statutory auditors, internal auditors or holding company’s auditors subject to obtaining equivalent confidentiality undertaking from professional advisors, statutory auditors, internal auditors or holding company’s auditors;

9.3.3. required by law or legal or regulatory process or pursuant to a governmental or statutory order and / or arising out of legal requirement.

Provided however, the Service Provider in such case will immediately, save in so far as it is not prevented by law or regulation, inform PFC of such requirement or of receipt of notice from any such bodies, before disclosing the Confidential Information, thereby enabling PFC a reasonable time to avoid disclosure by implementing means that are allowed under relevant laws or regulations.

9.4. The Service Provider shall only use the Confidential Information of PFC for the purpose of performing the Services stipulated under the RFP and the agreements entered into pursuant to the RFP and will restrict disclosure of the Confidential Information solely to those of its employees, agents and permitted subcontractors strictly on a need-to-know basis. The Service Provider will ensure that any such person permitted access to any portion of Confidential Information is advised of its confidential nature.

9.5. The Service Provider shall not, without the prior written consent of PFC, disclose the Confidential Information in any manner except as expressly authorised by the RFP and the agreements entered into pursuant to the RFP. Any disclosure of confidential or proprietary information as defined under the RFP and the agreements entered into pursuant to the RFP, and specifically under the RFP and the agreements entered into pursuant to the RFP, without the previous written consent of PFC to any party other than PFC, shall be considered as a material breach of the RFP and the agreements entered into pursuant to the RFP.

9.6. The Service Provider shall treat Confidential Information with at least the same degree of care that it treats its own confidential information, but in no event with less than a reasonable degree of care.

10. Engagement Of Third Party Service Providers/Subcontractors

10.1. The Service Provider shall endeavor to provide all the Services itself, however if certain specialised nature of Services are required to be outsourced, the Service Provider may engage contractors, sub-contractors, agents, consultants, experts temporary personnel, contractors, additional agents (“**Third Party Service Providers**”) acting on behalf of the Service Provider, original equipment manufacturers or any other third parties engaged by the Service Provider in connection with the services to be provided by the Service Provider under the RFP and agreements to be executed pursuant to the RFP.

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10.2. The engagement of the Third Party Service Providers to provide the services or any part thereof, shall be subject to:

10.2.1. prior written approval of PFC;

10.2.2. the Service Provider procuring and maintaining and ensuring that the Third Party Service Provider procures and maintains all requisite licenses as may be required under applicable law; and

10.2.3. the Service Provider entering into back-to-back arrangements with such Third Party Service Providers which ensure that such Third Party Service Providers strictly adhere with the same terms and conditions for rendering of the services as agreed by the Service Provider in the RFP or the agreements signed pursuant to the RFP.

10.2.4. in all the contracts, sub-contracts, agreements entered into by the Service Provider with Third Party Service Providers, the Service Provider shall ensure adequate provisions be inserted and/ or measures be taken up by the Service Provider to ensure that the terms and conditions of all such contracts, sub-contracts and agreements with Third Party Service Providers are brought in consonance with the terms of the RFP or the agreements signed pursuant to the RFP.

10.3. The Service Provider shall be responsible for provisions of all the services (including those provided by Third Party Service Providers) and any failure by the Service Provider to ensure compliance with the provisions of the RFP and the documents executed pursuant to the RFP.

10.4. The Service Provider shall maintain and ensure that all the Third Party Service Providers shall maintain an adequate insurance coverage, as is customarily procured by Service Providers in this regard, in respect of bodily harm, injury or death of the personnel who perform services for PFC and in respect of any potential business / cyber fraud by personnel of such Third Party Service Provider, during all times including the period during which such personnel perform the services for PFC pursuant to of the RFP and the documents executed pursuant to the RFP.

10.5. The Service Provider shall ensure that at all times PFC and its employees are indemnified against all claims (contractual or pursuant to any applicable laws) that may be raised by the Third Party Service Providers or the personnel in relation to rendering of the services.

10.6. It is further submitted that the information with regards to the compliance requirements shall be provided by Third Party Service Providers strictly from time to time OR on demand of PFC when required.

11. The **Service** Provider shall retain and utilise a sufficient number of trained and appropriately skilled personnel to perform the services as specified in the RFP and the documents executed pursuant to the RFP.

12. **The** Service Provider shall provide details of data (related to PFC and its customers) captured, processed and stored by it, as may be required by PFC.

13. The **Service** Provider shall cooperate with the RBI and all other relevant authorities in case of insolvency or resolution of PFC.

14. The Service Provider shall comply with directions given by the RBI in relation to the activities of PFC.

15. Grievance Redressal:

15.1. The Service Provider shall familiarize itself with the grievance redressal policy of PFC relating to outsourcing services; the Service Provider shall communicate the grievance redressal procedure of PFC to the customers of PFC and shall notify PFC within the specified time period of any claims / complaints / grievances made by the customers.

16. Business continuity:

16.1. The Service Provider has in place a robust and well defined business continuity program and disaster recovery program which comprises of policies and procedures with clearly defined roles, responsibilities and ownership for crisis management, emergency response, business recovery and IT disaster recovery planning, and thereby proactively maintains readiness and preparedness for business continuity on an ongoing basis to enable rapid recovery and resumption of critical operations post cyber-attacks or other incidents. The plans and procedures are in line with the guidelines issued by the RBI in this regard and the plans are reviewed and maintained regularly to incorporate any changes to environment, people, process and technology. Further, the

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Service Provider shall develop and establish a robust framework for documenting, maintaining and testing business continuity and recovery procedures. In this regard, PFC shall be entitled to conduct joint testing and recovery exercise with the Service Provider.

17. Indemnification:

The Service Provider undertakes and agrees to indemnify, defend and hold harmless PFC, its officers, directors, employees, personnel, representatives, consultants, from and against any and all claims, losses, liabilities, damages, cost, expenses, injury or death of any person, suits, actions (including attorney's fee) ("**Loss**") suffered or incurred by PFC or any of its affiliates, subsidiaries or associated entities as a result of or relating to:

- i. non-performance, inadequate performance, provision of deficient services, breach by the Service Provider, Third Party Service Providers or their personnel of any of the terms, conditions, covenants, representations, undertakings, obligations or warranties under the RFP and the documents executed pursuant to the RFP, including but not limited to the obligations pertaining to data protection and confidentiality;
- ii. Misrepresentations, misconduct, negligence of the Service Provider, Third Party Service Providers or their personnel in performance of its obligations under the RFP or any agreement signed pursuant to the RFP;
- iii. loss, misappropriations, misuse or damage to the documents or unauthorised disclosure or use of the customer data that are in the possession of the Third Party Service Providers or their personnel or other any persons within the control of the Service Provider;
- iv. any breach or non-performance by the Service Provider of any of its undertakings, representations, warranties, covenants, declarations or obligations under the RFP or any agreement signed pursuant to the RFP, including obligations regarding protection of confidential information and protection against security breach;
- v. material contravention of industry practice or any applicable policies of PFC;
- vi. causing of any damages to the customers of PFC through any acts or omissions of the Service Provider, the Third Party Service Providers or their personnel;
- vii. contravention of any applicable law by the Service Provider, Third Party Service Providers or their personnel;
- viii. any and all liability that may be incurred by PFC on account of any non-payment of any or all of such taxes, levies, duties, assessments, or deductions that are required to be paid by the Service Provider, including, among other things, any penalties and interest thereon assessed by any state or local government authority against PFC and all costs and expenses including reasonable legal fees incurred in defense of any such assessment;
- ix. legal risks including but not limited to exposure to fines, penalties, or punitive damages resulting from regulatory actions, as well as private settlements due to omissions and commissions of the Service Provider, Third Party Service Providers or their personnel
- x. any claim or proceeding initiated by a third party against PFC in respect of any services offered by the Service Provider, the Third Party Service Providers or their personnel pursuant to with the RFP or any agreement signed pursuant to the RFP, including on the grounds that the software or services offered or being used pursuant to the RFP or any agreement signed pursuant to the RFP, infringe any intellectual property rights, including patent, trademark, copyright, trade secret or industrial design rights of that third party
- xi. any claim by any other party against PFC arising from sub-Clauses (i) to (x) above. Further, the Service Provider hereby agrees and undertakes that PFC shall be entitled to the benefits and proceeds realized by the Service Provider from Third Party Service Providers against any indemnities provided by such Third Party Service Providers to the Service Provider in respect of any Loss arising as a result of or relating to the occurrence of any of the events set out in (i) to (x) above.

18. Storage of data wherever needed shall be stored only in India as per extant regulatory requirements.

Authorized Bid Signatory

(To be submitted on the Bidder's letter head)

Outsourcing of Cloud Computing Services

To whomsoever it may concern

Service provider shall ensure compliance with *Usage of Cloud Computing Services* of the RBI's Master Directions on Outsourcing of Information Technology Services, 2023, as amended from time to time, where any services pertaining to cloud computing are outsourced by PFC to the service provider and in this regard, the service provider shall:

- (i) take into account the cloud service specific factors including but not limited to multi-tenancy, multi-location storing, processing of data etc. as well as attendant risks, while establishing appropriate risk management framework;
- (ii) ensure that the cloud security best practices are followed for implementing necessary controls;
- (iii) ensure that the service and technology architecture supporting cloud-based applications is built in adherence to globally recognized architecture principles and standards;
- (iv) prefer a technology architecture that provides for secure container-based data management, where encryption keys and hardware security modules are under the control of service provider;
- (v) ensure that the architecture should provide for a standard set of tools and processes to manage containers, images and releases and the architecture is resilient and enable smooth recovery in case of failure of any one or combination of components across the cloud architecture with minimal impact on data or information security;
- (vi) ensure that multi-tenancy environments are protected against data integrity and confidentiality risks, and against co-mingling of data;
- (vii) agree on an identity and access management with PFC and ensure for providing role-based access to the cloud hosted applications, in respect of user-access and privileged-access;
- (viii) ensure to establish stringent access controls, as applicable for an on – premise application, for identity and access management to cloud-based applications;
- (ix) implement segregation of duties and role conflict matrix for all kinds of user-access and privileged-access roles in the cloud-hosted application irrespective of the cloud service model;
- (x) ensure that access provisioning shall be governed by principles of 'need to know' and 'least privileges';
- (xi) ensure that multi-factor authentication is implemented for access to cloud applications;
- (xii) ensure that the implementation of security controls in the cloud-based application achieves similar or higher degree of control objectives than those achieved in or by an on-premise application of PFC and this would include ensuring secure connection through appropriate deployment of network security resources and their configurations, appropriate and secure configurations, monitoring of the cloud assets utilised by PFC, necessary procedures to authorise changes to cloud applications and related resources;
- (xiii) ensure that the minimum monitoring requirements in the cloud environment as required by PFC are always met;
- (xiv) maintain an information security policy framework commensurate with its exposures to vulnerabilities and threats;
- (xv) maintain its information or cyber security capability with respect to changes in vulnerabilities and threats, including those resulting from changes to information assets or its business environment;
- (xvi) ensure that the nature and frequency of testing of controls by it are in line with the materiality of the services being outsourced by PFC and the threat environment;

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- (xvii) put in place mechanisms to assess the sub-contractors with regards to confidentiality, integrity and availability of the data being shared with the sub-contractors, where applicable;
- (xviii) ensure appropriate integration of logs, events from service provider into PFC security operations centres, or retention of relevant logs in cloud has been ensured for incident reporting and handling of incidents relating to services deployed on the cloud;
- (xix) ensure continuous and regular updates of security-related software including upgrades, fixes, patches and service packs for protecting the application from advanced threats and/or malware;
- (xx) have a well-governed and structured approach to manage threats and vulnerabilities supported by requisite industry-specific threat intelligence capabilities;
- (xxi) put in place demonstrative capabilities for preparedness and readiness for cyber resilience as regards cloud services in use by it, which shall be systematically ensured, inter alia, through robust incident response and recovery practices including conduct of disaster recovery drills at various levels of cloud services including necessary stakeholders; and
- (xxii) subject to applicability and cloud usage, ensure that the audit or periodic review or third-party certifications of service provider cover the roles and responsibilities of service provider in cloud governance, access and network controls, configurations, monitoring mechanism, data encryption, log review, change management, incident response, and resilience preparedness and testing etc.

Authorized Bid Signatory

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APPENDIX – XV

(To be furnished on the Bidder’s Letter head)

UNDERTAKING FOR PROPRIETARY ARTICLE TENDER

M/s. Power Finance Corporation
Ltd. “Urjanidhi”, 1, Barakhamba
Lane, Connaught Place,
New Delhi-110 001.

Subject: Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years

Dear Sir,

With reference to your Bid **Ref. No. 02:09:197:I:25-26:ATS dated 26-Nov-2025**for “**Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years**”, we do hereby undertake that we have not supplied / are not supplying same product / systems or subsystems at a price lower than that offered in the present bid in respect of any other Department of the Government of India or PSU and if it is found at any stage that same product/ systems or sub systems was supplied by us to any other Ministry/ Department of the Government of India or a PSU at a lower price, then that very price, with due allowance for elapsed time, will be applicable to the present case and the difference in the cost would be refunded by us to the PFC, if the contract has already been concluded.

Yours faithfully,

For and on behalf of.....
Name.....
Designation.....
Stamp.....

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

THIS CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT (the “Agreement”) made this _____ Day of _____, _____ (the “Effective Date”) by and between _____ a _____ corporation, and _____ a _____ corporation, (Collectively, the “Parties” and each individually a “Party”).

The Parties are exploring the possibility of engaging in one or more mutually beneficial business relationships (collectively, the “Business Relationship”). The Parties recognize that in the course of their discussions to further the Business Relationship, it will be necessary for each Party to disclose to the other certain Confidential Information (as defined below). Each Party desires to set forth the terms that apply to such Confidential Information.

NOW, THEREFORE, for and in consideration of the foregoing, of the promises and covenants set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties do hereby agree as follows:

1. The Parties shall (i) use reasonable efforts to maintain the confidentiality of the information and materials, whether oral, written or in any form whatsoever, of the other that may be reasonably understood, from legends, the nature of such information itself and/or the circumstances of such information’s disclosure, to be confidential and/or proprietary thereto or to third parties to which either of them owes a duty of nondisclosure (collectively, “Confidential Information”); (ii) take reasonable action in connection therewith, including without limitation at least the action that each takes to protect the confidentiality of its comparable proprietary assets; (iii) to the extent within their respective possession and/or control, upon termination of this Agreement for any reason, immediately return to the provider thereof all Confidential Information not licensed or authorized to be used or enjoyed after termination or expiration hereof, and (iv) with respect to any person to which disclosure is contemplated, require such person to execute an agreement providing for the treatment of Confidential Information set forth in clauses (i) through (iii). The foregoing shall not require separate written agreements with employees and agents already subject to written agreements substantially conforming to the requirements of this Section nor with legal counsel, certified public accountants, or other professional advisers under a professional obligation to maintain the confidences of clients.

2. Notwithstanding the foregoing, the obligation of a person to protect the confidentiality of any information or materials shall terminate as to any information or materials which: (i) are, or become, public knowledge through no act or failure to act of such person; (ii) are publicly disclosed by the proprietor thereof; (iii) are lawfully obtained without obligations of confidentiality by such person from a third party after reasonable inquiry regarding the authority of such third party to possess and divulge the same; (iv) are independently developed by such person from sources or through persons that such person can demonstrate had no access to Confidential Information; or (v) are lawfully known by such person at the time of disclosure other than by reason of discussions with or disclosures by the Parties.

3. All Confidential Information delivered pursuant to this Agreement shall be and remain the property of the disclosing Party, and any documents containing or reflecting the Confidential Information, and all copies thereof, shall be promptly returned to the disclosing Party upon written request, or destroyed at the disclosing Party’s option. Nothing herein shall be construed as granting or conferring any rights by license or otherwise, express or implied, regarding any idea made, conceived or acquired prior to or after the Effective Date, nor as granting any right with respect to the use or marketing of any product or service. The Parties shall use the Confidential Information only for the Business Relationship.

The obligations of the Parties under this Agreement shall continue and survive the completion or abandonment of the Business Relationship and shall remain binding for a period of two (2) years from the Effective Date.

4. As a violation by either Party of this Agreement could cause irreparable injury to the other Party and as there is no adequate remedy at law for such violation, the non-breaching Party may, in addition to any other remedies available to it at law or in equity, enjoin the breaching Party in a court of equity for violating or threatening to violate this Agreement. In the event either Party is required to enforce this Agreement through

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legal action, then it will be entitled to recover from the other Party all costs incurred thereby, including without limitation, reasonable attorney's fees.

5. Neither Party makes any representation or warranty with respect to any Confidential Information disclosed by it, nor shall either Party or any of their respective representatives have any liability hereunder with respect to the accuracy or completeness of any Confidential Information or the use thereof.

6. Any provision of this Agreement held or determined by a court (or other legal authority) of competent jurisdiction to be illegal, invalid, or unenforceable in any jurisdiction shall be deemed separate, distinct and independent, and shall be ineffective to the extent of such holding or determination without (i) invalidating the remaining provisions of this Agreement in that jurisdiction or (ii) affecting the legality, validity or enforceability of such provision in any other jurisdiction.

7. Any notice required or permitted to be given hereunder shall be (a) in writing, (b) effective on the first business day following the date of receipt, and (c) delivered by one of the following means: (i) by personal delivery; (ii) by prepaid, overnight package delivery or courier service; or (iii) by the United States Postal Service, first class, certified mail, return receipt requested, postage prepaid. All notices given under this Agreement shall be addressed to the addresses stated at the outset of this Agreement, or to new or additional addresses as the Parties may be advised in writing.

8. This Agreement is to be governed by and construed in accordance with the laws of the state of . Neither Party shall be deemed to waive any of its rights, powers or remedies hereunder unless such waiver is in writing and signed by said Party. This Agreement is binding upon and inure to the benefit of the Parties and their successor and assigns.

9. This Agreement constitutes the entire agreement and understanding of the Parties with respect to the subject matter hereof and is intended as the Parties' final expression and complete and exclusive statement of the terms thereof, superseding all prior or contemporaneous agreements, representations, promises and understandings, whether written or oral. Neither Party is to be bound by any pre-printed terms appearing in the other Party's form documents, tariffs, purchase orders, quotations, acknowledgments, invoices, or other instruments. This Agreement may be amended or modified only by an instrument in writing signed by both Parties.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized officers on the day and year first above written.

By: _____
Name: _____
Title: _____

By: _____
Name: _____
Title: _____

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APPENDIX – XVII

CHECK LIST

Check List for the requirement of bid documents and pre-qualifying criteria for the work **“Procurement of ATS support services for HPE StoreOnce 3640 Backup Appliance, Backup Server and LTO-8 Tape Library for a period of two (2) years”**

Must be submitted along with the bid.

S. No.	Description	Required Supporting Documents	Enclosed/ Not enclosed
1.	EMD amounting to Rs. 36,000/-	Proof of EMD / valid EMD exemption document	
2.	Minimum Qualifying Criteria		
	Criteria	Supporting Document	
	Bidder should have valid PAN, GST registration as on bid submission date.	Copy of PAN & GST registration duly attested by authorized bid signatory.	
	The Bidder should have Registered Office/ Head Office/ Branch Office in Delhi/NCR.	Valid proof of office in Delhi/ NCR duly attested by the authorized bid signatory.	
	Average Annual Turnover of the Bidder should be minimum Rs. 18 lakhs during last three financial years.	Copy of audited Balance Sheet and Profit & Loss account or CA certificate should be submitted. In case the audit is ongoing for last FY, provisional statements duly attested by CA/ statutory auditor should be submitted.	
	Bidder should have a positive Profit Before Tax (PBT) or Networth in at least two of the last three financial years.		
	A Company/ Firm/ LLP registered in India for a period of at least three (3) years before the bid submission date and;	Copy of Certificate of Incorporation/ other relevant document duly attested by authorized bid signatory and	
	Minimum three years' experience in execution of similar works as on the last date of bid submission.	Copy of Purchase Order along with execution proof showing minimum three years' experience.	
	The bidder must have successfully completed similar work during last three financial years and up to bid submission date as per below criteria: i) Three similar completed works, each costing not less than the amount of Rs. 7.01 lakhs; or (ii) Two similar completed works each costing not less than the amount of Rs. 8.77 lakhs ; or (iii) One similar completed work each costing not less than the amount of Rs. 14.02 lakhs.	Documentary evidence should be submitted.	
	Bidder must not stand declared ineligible/ blacklisted/ banned/ debarred by any PSU/ Ministry/ Govt. organization from participation in its Tender Processes.	Undertaking to be submitted on letterhead of the company duly signed by Authorized bid signatory, as per PFC format	
	The Bidder should be OEM or Authorized Partner/ Distributor/ System Integrator of the OEM(s) of the offered product(s). Note: Either OEM or Authorized Partner/ Distributor/ System Integrator of the OEM(s) only can participate in	Bidder to submit documentary proof (MAF), specifically in reference to this bid, duly signed by OEM's.	

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	the Bid/ Tender. If both participates in this Bid/Tender, then the bid of both bidders will not be considered and both the bids will be technically disqualified.		
3.	Schedule-1 (Qualifying Requirement Data) Schedule-2 (Technical Deviations) Schedule-3 (Commercial Deviations)	Respective documents	
4.	Price Bid as per Annexure V. Total contract price in INR to be quoted on GeM portal only.	Respective documents	
5.	Appendix (I to XVII)	Respective documents	
6.	Any other documents not mentioned above but required for fulfillment of Pre-Qualification Criteria or bid documents.		

Relaxations if applicable for MSME or start-up companies on the above mentioned qualifying requirements shall be as per applicable norms.